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FEDERAL REGISTER

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Washington, Tuesday, February 25, 1941

The President

EXECUTIVE ORDER

WITHDRAWAL OF PUBLIC LAND FOR FOREST LOOKOUT STATION

OREGON

By virtue of the authority vested in me by the act of June 25, 1910, 36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497, it is ordered as follows:

SECTION 1. Executive Order No. 6910 of November 26, 1934, as amended, temporarily withdrawing certain lands for classification and other purposes, is hereby revoked as to the following-described tract of public land in Oregon:

WILLAMETTE MERIDIAN

T. 40 S., R. 8 W., sec. 33, SW¼SW¼, 40 acres.

SECTION 2. Subject to valid existing rights, the tract of land described in section 1 of this order is hereby temporarily withdrawn from settlement, location, sale, or entry, and reserved for use by the Forest Service of the Department of Agriculture as a fire-lookout station in connection with the administration of the Siskiyou National Forest.

SECTION 3. The withdrawal made by section 2 of this order shall remain in force until revoked by the President or by act of Congress.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
February 20, 1941.

[No. 8691]

[F. R. Doc. 41-1303; Filed, February 21, 1941; 3:05 p. m.]

Rules, Regulations, Orders

TITLE 14—CIVIL AVIATION

CHAPTER I—CIVIL AERONAUTICS AUTHORITY

[Amendment 95, Civil Air Regulations]

PART 60—AIR TRAFFIC RULES

REDESIGNATION OF CERTAIN AIRWAY TRAFFIC CONTROL AREAS AND THE DELETION OF NASHVILLE, TENNESSEE, AS A CONTROL ZONE OF INTERSECTION

At a session of the Civil Aeronautics Board held at its office in Washington, D. C., on the 21st day of February 1941.

Acting pursuant to the authority vested in it by the Civil Aeronautics Act of 1938, as amended, particularly sections 205 (a) and 601 (a) of said Act, and finding that its action is desirable in the public interest and is necessary to carry out the provisions of, and to exercise and perform its powers and duties under, said Act, the Civil Aeronautics Board amends the Civil Air Regulations as follows:

Effective March 1, 1941, 12:01 A. M., C. S. T., Part 60 of the Civil Air Regulations is amended as follows:

1. By deleting the words "Nashville, Tenn." in § 60.22.

2. By amending § 60.2403 to read as follows:

§ 60.2403. *Green civil airway No. 4 airway traffic control areas (Los Angeles, Calif., to Washington, D. C.).* Those portions of green civil airway No. 4: From the Los Angeles, Calif., radio range station, to a line extended at right angles across such airway through a point on the center line thereof 25 miles south of the Phoenix, Ariz., radio range station; from a line extended at right angles

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across such airway through a point on the center line thereof 25 miles east of the Big Spring, Tex., radio range station, to a line extended at right angles across such airway through a point on the center line thereof 25 miles southwest of the Little Rock, Ark., radio range station; from a line extended at right angles across such airway through a point on the center line thereof 25 miles northeast of the Jacks Creek, Tenn., radio range station, to the Washington Airport, Arlington, Va.

3. By amending § 60.2415 to read as follows:

§ 60.2415 *Amber civil airway No. 6 airway traffic control areas (Jacksonville, Fla., to Buffalo, N. Y.).* Those portions of amber civil airway No. 6: From a line extended at right angles across such airway through a point on the center line thereof 25 miles northwest of the Alma, Ga., radio range station, to the Buffalo, N. Y., radio range station.

By the Civil Aeronautics Board.

[SEAL] DONALD W. NYROP,
Acting Secretary.

[F. R. Doc. 41-1316; Filed, February 24, 1941; 10:40 a. m.]

[Amendment 96, Civil Air Regulations]

PART 60—AIR TRAFFIC RULES

REDESIGNATION OF CERTAIN AIRWAY TRAFFIC CONTROL AREAS AND THE ADDITION OF SYRACUSE, NEW YORK, AS A CONTROL ZONE OF INTERSECTION

At a session of the Civil Aeronautics Board held at its office in Washington, D. C., on the 21st day of February 1941.

Acting pursuant to the authority vested in it by the Civil Aeronautics Act of 1938, as amended, particularly sections 205 (a) and 601 (a) of said Act, and finding that its action is desirable in the public interest and is necessary to carry out the provisions of, and to exercise and perform its powers and duties under, said Act, the Civil Aeronautics Board amends the Civil Air Regulations as follows:

Effective March 1, 1941, 12:01 A. M., E. S. T., Part 60 of the Civil Air Regulations is amended as follows:

1. By amending § 60.22 to read as follows:

§ 60.22 *Control zones of intersection designation.* The radio range station of the Administrator of Civil Aeronautics located at each of the following cities is designated as the center of a control zone of intersection: Albany, N. Y.; Albuquerque, N. Mex.; Amarillo, Tex.; Belgrade, Mont.; Boston, Mass.; Billings, Mont.; Bismarck, N. Dak.; Burlington, Vt.; Charleston, S. C.; Cheyenne, Wyo.; Concord, N. H.; Corpus Christi, Tex.; Daytona Beach, Fla.; Denver, Colo.; El Paso, Tex.; Fargo, N. Dak.; Helena, Mont.; Houston, Tex.; Huron, S. Dak.; Jackson, Miss.; Jacksonville, Fla.; Laramie, Wyo.; Memphis, Tenn.; Miami, Fla.; Millinocket, Maine; Minneapolis, Minn.; Nashville, Tenn.; Mobile, Ala.; New Orleans, La.; Oklahoma City, Okla.; Omaha, Neb.; San Antonio, Tex.; Spokane, Wash.; Syracuse, N. Y.; Tallahassee, Fla.; Tampa, Fla.; Tulsa, Okla.; White Hall, Mont.; Wichita, Kans.

2. By amending § 60.2400 to read as follows:

§ 60.2400 *Green civil airway No. 1 airway traffic control areas (Seattle, Wash., to Boston, Mass.).* Those portions of green civil airway No. 1: From Boeing Field, Seattle, Wash., to a line extended at right angles across such airway through a point on the center line thereof 25 miles east of Ellensburg, Wash.; from a line extended at right angles across such airway through a point on the center line thereof 25 miles southeast of the La Crosse, Wis., radio range station, to the intersection of the center line of the on course signal of the east leg of the Detroit, Mich., (Wayne County Airport) radio range and the U. S.-Canadian Border; from the intersection of the center line of the on course signal of the west leg of the Buffalo, N. Y., radio range and the U. S.-Canadian Border, to a line extended at right angles across such airway through a point on the center line thereof 25 miles east of the Buffalo, N. Y., radio range station.

3. By amending § 60.24317 to read as follows:

§ 60.24317 *Blue civil airway No. 18 airway traffic control areas (Newark, N. J., to Syracuse, N. Y.).* No designation.

By the Civil Aeronautics Board.

[SEAL] DONALD W. NYROP,
Acting Secretary.

[F. R. Doc. 41-1317; Filed, February 24, 1941; 10:40 a. m.]

TITLE 16—COMMERCIAL PRACTICES

CHAPTER I—FEDERAL TRADE COMMISSION

[Docket No. 3900]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

IN THE MATTER OF INTERSTATE BAKERIES CORPORATION ET AL.

§ 3.7 *Aiding, assisting and abetting unfair or unlawful act or practice:* § 3.24 (c) *Coercing and intimidating—Customers of competitors—By divers threats and/or methods of intimidation:* § 3.27 (f) *Combining or conspiring—To limit distribution to regular or established channels:* § 3.27 (h) *Combining or conspiring—To restrain and monopolize trade:* § 3.30 (b) *Cutting off competitors' access to customers or market—Hindering salesmen:* § 3.33 (b10) *Cutting off competitors' supplies—Refusing sales to.* In connection with the offer, sale and distribution of bread, pastries, cakes and other bakery products in commerce, etc., and on the part of three corporations and four individuals engaged in manufacture of such products and sale thereof in Sioux City, Iowa, and also, as case might be, in other states, and on the part of respondent labor union and certain individuals who were officers and members thereof, (1) entering into or carrying out any agreement or understanding, the purpose or effect of which is to hinder, lessen or suppress competition in the purchase, sale and distribution in said commerce of bread, cakes or other bakery products; (2) enforcing or attempting to enforce by any method or means any understanding or agreement, the purpose or effect of which is to lessen or suppress competition in the purchase, sale and distribution in said commerce of such products; (3) entering into any agreement to classify dealers for the purpose or with the effect of hindering or preventing any dealer or any class of dealers from obtaining bread, pastries, cakes or other bakery products in said commerce for resale or carrying out or enforcing any such agreement of classification; and (4) the use of threats or other coercive methods or practices pursuant to agreement or understanding with each other or with others to prevent any bakery or dealer or route man from purchasing and receiving or selling and delivering bread, pastries, cakes or other bakery products in said commerce; prohibited. (Sec. 5, 38 Stat. 719, as amended by sec. 3, 52 Stat. 112; 15 U.S.C., Supp. IV, sec. 45b) [Cease and desist order, Interstate Bakeries Corporation et al., Docket 3900, February 6, 1941]

In the Matter of Interstate Bakeries Corporation, a corporation; The Continental Baking Company, a corporation; The Sioux City Bakery, a corporation; Metz Brothers Baking Company, a corporation; Fred W. Lenhardt, an individual trading as Quality Bakery; Emil A. Madsen, an individual trading as Madsen Bakery; Jake Schindler, an individual trading as Iowa Bakery Company; Anthony Pages, an individual trading as Sunkist Cake and Pie Company; Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union, an unincorporated association, and Glenn Beamen, Charles Cunningham, Jim Brookhart, William Carlson, O. G. Foster, Ralph Johnson and Howard Foutz, individually and as officers and members of Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union, and as representatives of other members thereof

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 6th day of February, A. D. 1941.

This proceeding having been heard [1] by the Federal Trade Commission upon the complaint of the Commission, the answers of respondents, testimony and other evidence taken before John L. Hornor, an examiner of the Commission theretofore duly designated by it, in support of the allegations of the complaint and in opposition thereto, briefs filed herein, oral argument not having been requested, and the Commission having made its findings as to the facts and its conclusion that the respondents, The Continental Baking Company, a corporation; The Sioux City Bakery, a corporation; Metz Brothers Baking Company, a corporation; Fred W. Lenhardt, an individual trading as Quality Bakery; Emil A. Madsen, an individual trading as Madsen Bakery; Jake Schindler, an individual trading as Iowa Bakery Company; Anthony Pages, an individual trading as Sunkist Cake and Pie Company; Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union, an unincorporated association; and Glenn Beamen, Charles Cunningham, Jim Brookhart, William Carlson, O. G. Foster, Ralph Johnson and Howard Foutz, individually and as officers and members of Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union and as representatives of other members thereof, have violated the provisions of the Federal Trade Commission Act.

It is ordered, That the respondents, The Continental Baking Company, a corporation; the Sioux City Bakery, a corporation; Metz Brothers Baking Company, a corporation; Fred W. Lenhardt, an individual trading as Quality Bakery; Emil A. Madsen, an individual trading as Madsen Bakery; Jake Schindler, an individual trading as Iowa Bakery Company; Anthony Pages, an individual trading as Sunkist Cake and Pie Company; Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union an unincorporated association; and Glenn Beamen, Charles Cunningham, Jim Brookhart, William Carlson, O. G. Foster, Ralph Johnson and Howard Foutz, individually and as officers and members of Local No. 383 of the Chauffeurs, Teamsters and Stablemen and Helpers Union and as representatives of other members thereof, their agents, servants and employees in connection with the offering for sale, sale and distribution of bread, pastries, cakes and other bakery products in commerce as commerce is defined in the Federal Trade Commission Act do forthwith cease and desist:

1. Entering into or carrying out any agreement or understanding, the purpose or effect of which is to hinder, lessen or suppress competition in the purchase, sale and distribution in said commerce of bread, cakes or other bakery products.

2. Enforcing or attempting to enforce by any method or means any understanding or agreement, the purpose or effect of which is to lessen or suppress competition in the purchase, sale and distribution in said commerce of bread, cakes, pastries and other bakery products.

3. Entering into any agreement to classify dealers for the purpose or with the effect of hindering or preventing any dealer or any class of dealers from obtaining bread, pastries, cakes or other bakery products in said commerce for resale or carrying out or enforcing any such agreement of classification.

4. The use of threats or other coercive methods or practices pursuant to agreement or understanding with each other or with others to prevent any bakery or dealer or route man from purchasing and receiving or selling and delivering bread, pastries, cakes or other bakery products in said commerce.

It is further ordered, That the respondents other than the Interstate Bakeries Corporation shall, within sixty (60) days after service on them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with this order.

It is further ordered, That the complaint as to the Interstate Bakeries Corporation be and the same hereby is dismissed.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 41-1321; Filed, February 24, 1941; 11:22 a. m.]

[1] 5 F.R. 1631.

TITLE 17—COMMODITY AND SECURITIES EXCHANGES

CHAPTER II—SECURITIES AND EXCHANGE COMMISSION

PART 270—INVESTMENT COMPANY ACT OF 1940

RULES REGARDING DISCLOSURE OF THE SOURCES OF DIVIDEND PAYMENTS OR DISTRIBUTIONS MADE BY REGISTERED INVESTMENT COMPANIES

Acting pursuant to the Investment Company Act of 1940, particularly sections 19 and 38 (a) thereof, the Securities and Exchange Commission adopts

§§ 270.19–1 and 270.19–2 (Rules N–19–1 and N–19–2), to read as follows:

§ 270.19–1 *Written statement to accompany dividend payments by management companies.* (a) Every written statement made pursuant to section 19[1] by or on behalf of a management company shall be made on a separate paper and shall clearly indicate what portion of the payment per share is made from the following sources:

(1) Net income for the current or preceding fiscal year, or accumulated undistributed net income, or both, not including in either case profits or losses from the sale of securities or other properties.

(2) Accumulated undistributed net profits from the sale of securities or other properties (except that an open-end company may treat as a separate source its net profits from such sales during its current fiscal year).

(3) Paid-in surplus or other capital source. To the extent that a payment is properly designated as being made from a source specified in subparagraph (1) or (2), it need not be designated as having been made from a source specified in subparagraph (3).

(b) If the payment is made in whole or in part from a source specified in subparagraph (a) (2) the written statement shall indicate, after giving effect to the part of such payment so specified, the deficit, if any, in the aggregate of (1) accumulated undistributed realized profits less losses on the sale of securities or other properties and (2) the net unrealized appreciation or depreciation of portfolio securities, all as of a date reasonably close to the end of the period as of which the dividend is paid. Any statement made pursuant to the preceding sentence shall specify the amount, if any, of such deficit which represents unrealized depreciation of portfolio securities.

(c) Accumulated undistributed net income and accumulated undistributed net profits from the sale of securities or other properties shall be determined, at the option of the company, either (1) from the date of the organization of the company, (2) from the date of a reorganization, as defined in clause (A) or (B) of section 2 (a) (32) of the Act (sec. 2, 54 Stat. 790), (3) from the date as of which a write-down of portfolio securities was made in connection with a corporate readjustment, approved by stockholders, of the type known as a "quasi-reorganization," or (4) from January 1, 1925, to the close of the period as of which the dividend is paid, without giving effect to such payment.

(d) For the purpose of this rule, open-end companies which upon the sale of their shares allocate to undistributed income or other similar account that portion of the consideration received which represents the approximate per share amount of undistributed net income included in the sales price, and make a corresponding deduction from undistributed net income upon the purchase or redemption of shares, need not treat the amounts so allocated as paid-in surplus or other capital source.

(e) For the purpose of this rule, the source or sources from which a dividend is paid shall be determined (or reasonably estimated) to the close of the period as of which it is paid without giving effect to such payment. If any such estimate is subsequently ascertained to be inaccurate in a significant amount, a correction thereof shall be made by a written statement pursuant to section 19[1] or in the first report to stockholders following discovery of the inaccuracy.

(f) Insofar as a written statement made pursuant to section 19[1] relates to a dividend on preferred stock paid for a period of less than a year, a company may elect to indicate only that portion of the payment which is made from sources specified in subparagraph (a) (1), and need not specify the sources from which the remainder was paid. Every company which in any fiscal year elects to make a statement pursuant to the preceding sentence shall transmit to the holders of such preferred stock, at a date reasonably near the end of the last dividend period in such fiscal year, a statement meeting the requirements of paragraph (a) on an annual basis.

(g) The purpose of this rule, in the light of which it shall be construed, is to afford security holders adequate disclosure of the sources from which dividend payments are made. Nothing in this rule shall be construed to prohibit the inclusion in any written statement of additional information in explanation of the information required by this rule. Nothing in this rule shall be construed to permit a dividend payment in violation of any state law or to prevent compliance with any requirement of state law regarding dividends consistent with this rule. (Sec. 19, 54 Stat. 821: Sec. 38, 54 Stat. 841) [Rule N-19–1, effective March 1, 1941]

§ 270.19–2 *Written statement permitted for dividend payments by management companies during 1941.* (a) A written statement required by section 19[1] for a dividend payment made or declared by or on behalf of a management company during the calendar year 1941 in lieu of indicating what portion of the payment per share is made from the sources specified in paragraph (a) of § 270.19–1 (Rule N–19–1), may indicate what portion of the payment per share is made from the following sources:

(1) Net income for the current or preceding fiscal year, not including profits or losses from the sale of securities or other properties.

(2) If the company is an open-end company, net profits for the current fiscal year from the sale of securities or other properties.

(3) Other surplus or capital sources, separately designated if and to the extent segregated by the Company's ledger accounts.

(b) Paragraphs (d) and (e) of § 270.19–1 (Rule N–19–1) shall apply to statements made pursuant to this rule. (Sec. 19, 54 Stat. 821; Sec. 38, 54 Stat. 841) [Rule N–19–2, effective March 1, 1941]

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41–1305; Filed, February 21, 1941; 4:39 p. m.]

[1] Sec. 19, 54 Stat. 821.

TITLE 20—EMPLOYEES' BENEFITS

CHAPTER III—SOCIAL SECURITY BOARD

[Regulations No. 2, further amended]

PART 402—FEDERAL OLD-AGE BENEFITS

UNIFORM COVERAGE OF CERTAIN PERSONS ENGAGED IN COAL-MINING OPERATIONS

In order to conform regulations No. 2, as amended (Part 402, Title 20, Code of Federal Regulations) to the applicable provisions of the Social Security Act, as amended, and to the Act approved August 13, 1940 entitled "An Act to provide for more uniform coverage of certain persons employed in coal-mining operations with respect to insurance benefits provided for by certain Federal Acts, and for other purposes," (54 Stat. 785) such regulations are further amended as follows:[1]

1. By amending subsection (f) of article 1 (§ 402.1 *General definitions and use of terms,* Title 20, Code of Federal Regulations) to read as follows:

(f) The Railroad Retirement Act of 1937 means the Act approved June 24, 1937 (Pub. No. 162, 75th Congress (H.R. 7519)), as amended, as modified by the Act approved August 13, 1940. (54 Stat. 785)

2. By inserting at the end of subsection (a) of section 1 of the Railroad Retirement Act of 1937, preceding article 12 (§ 402.12, Title 20, Code of Federal Regulations), the following:

The term "employer" shall not include any company by reason of its being engaged in the mining of coal, the supplying of coal to an employer where delivery is not beyond the mine tipple, and the operation of equipment or facilities therefor, or in any of such activities. (As amended by section 1 of the Act approved August 13, 1940 (54 Stat. 785))

3. By inserting at the end of subsection (b) of section 1 of the Railroad Retirement Act of 1937, preceding article 12 (section 402.12, Title 20, Code of Federal Regulations), the following:

The term "employee" shall not include any individual while such individual is engaged in the physical operations consisting of the mining of coal, the preparation of coal, the

[1] These regulations are issued under authority contained in sections 1102, 205 (a) of the Social Security Act (49 Stat. 647, 53 Stat. 1368; 42 U.S.C., Supp. V, 1302, 405 (a)).

handling (other than movement by rail with standard railroad locomotives) of coal not beyond the mine tipple, or the loading of coal at the tipple. (As amended by section 3 of the Act approved August 13, 1940 (54 Stat. 785))

4. By inserting immediately preceding article 12 (§ 402.12, Title 20, Code of Federal Regulations), the following:

SECTION 4 (A) OF THE ACT APPROVED AUGUST 13, 1940 (54 STAT. 785)

The laws hereby expressly amended, the Social Security Act, approved August 14, 1935, and all amendments thereto, shall operate as if each amendment herein contained had been enacted as a part of the law it amends, at the time of the original enactment of such law.

5. By amending article 12 (§ 402.12, Title 20, Code of Federal Regulations) to read as follows:

Services under the Railroad Retirement Act. Service performed as an employee, as defined in section 1 (b) of the Railroad Retirement Act of 1937, are excepted. Services by an individual in the physical operations consisting of the mining of coal, the preparation of coal, the handling (other than movement by rail with standard railroad locomotives) of coal not beyond the mine tipple, or the loading of coal at the tipple, upon the basis of which any annuity or pension was granted under the Railroad Retirement Act of 1935 or the Railroad Retirement Act of 1937, prior to August 13, 1940, are also excepted.

In pursuance of sections 205 (a) and 1102 of the Act, the foregoing regulations this day adopted by the Board are hereby prescribed this February 13, 1941.

[SEAL] SOCIAL SECURITY BOARD,
A. J. ALTMEYER,
Chairman.

Approved February 20, 1941.

PAUL V. MCNUTT,
Federal Security Administrator.

[F. R. Doc. 41-1313; Filed, February 24, 1941; 10:30 a. m.]

[Regulations No. 3, further amended]

PART 403—FEDERAL OLD-AGE AND SURVIVORS INSURANCE [1]

UNIFORM COVERAGE OF CERTAIN PERSONS ENGAGED IN COAL-MINING OPERATIONS

In order to conform regulations No. 3, as amended (Part 403,[2] Title 20, Code of Federal Regulations, 1940 Supp.) to the applicable provisions of the Social Security Act, as amended, and to the Act approved August 13, 1940 entitled "An Act to provide for more uniform coverage of certain persons employed in coal-mining operations with respect to insurance benefits provided for by certain Federal Acts, and for other purposes," (54 Stat. 785) such regulations are further amended as follows: [3]

1. Section 403.1 *Chronological description of pertinent statutes and regulations,* is amended by inserting at the end of subsection (a) (1) the following:

The Act approved August 13, 1940 (54 Stat. 785) relates to the coverage of certain persons employed in coal-mining operations.

and by inserting at the end of subsection (a) (2) the following:

Regulations amending Regulations Nos. 2, as amended, and 3, as amended, pursuant to the Act approved August 13, 1940 (54 Stat. 785).

and by inserting at the end of subsection (b) (1) the following:

The Act approved August 13, 1940 (54 Stat. 785) relates to the coverage of certain persons employed in coal mining operations.

and by inserting at the end of subsection (b) (2) the following:

Regulations amending Regulations Nos. 2, as amended, and 3, as amended, pursuant to the Act approved August 13, 1940 (54 Stat. 785).

2. By inserting the following immediately preceding § 403.505 *Deductions because of lump-sum payments under original Act and failure to pay taxes,:*

SECTION 4 (C) OF THE ACT APPROVED AUGUST 13, 1940 (54 STAT. 785)

* * * In any case in which a death benefit alone has been granted (under the Railroad Retirement Act of 1935 or the Railroad Retirement Act of 1937), the amount of such death benefit attributable to services, coverage of which is affected by this Act, shall be deemed to have been paid to the deceased under section 204 of the Social Security Act in effect prior to January 1, 1940, and deductions shall be made from any insurance benefit or benefits payable under the Social Security Act, as amended, with respect to wages paid to an individual for such services until such deductions total the amount of such death benefit attributable to such services.

3. By inserting the following sentence at the end of § 403.505 (a):

In any case in which a death benefit alone has been granted under the Railroad Retirement Act of 1935 or the Railroad Retirement Act of 1937, upon the basis of services in the physical operations consisting of the mining of coal, the preparation of coal, the handling (other than movement by rail with standard railroad locomotives) of coal not beyond the tipple, or the loading of coal at the tipple, the amount of such benefit attributable to such services shall be deemed to have been paid to the deceased as a section 204 payment, and deductions shall be made in accordance with section 403.505 (c) from any insurance benefit or benefits payable under Title II of the Act with respect to wages paid to an individual for such services until such deductions total the amount of such death benefit attributable to such services.

4. By inserting the following immediately preceding § 403.701 *Filing of applications and other forms:*

SECTION 5 OF THE ACT APPROVED AUGUST 13, 1940 (54 STAT. 785)

Any application for payment filed with the Railroad Retirement Board prior to, or within sixty days after, the enactment of this Act shall, under such regulations as the Social Security Board may prescribe, be deemed to be an application filed with the Social Security Board by such individual or by any person claiming any payment with respect to the wages of such individual, under any provision of section 202 of the Social Security Act, as amended.

5. By inserting after subsection (h) of § 403.701, the following new subsection:

(i) *Applications filed with the Railroad Retirement Board on or before October 12, 1940.* Notwithstanding any other provision of these regulations or of the Act restricting the acceptability of an application filed prior to three months before the first month for which an individual could become entitled to a benefit, or any provision of these regulations restricting the place for filing an application, any application which was filed with the Railroad Retirement Board on or before October 12, 1940, for any annuity, pension, or benefit under the Railroad Retirement Act of 1935 or under the Railroad Retirement Act of 1937, which application is based in whole or in part on wages received for services in employment under the Act, shall as of the date on which such application was filed with the Railroad Retirement Board, be deemed to be an acceptable application filed with the Social Security Board for any benefits payable to any individual who could have become entitled to a benefit with respect to such wages prior to the month of February, 1941.

6. By inserting at the end of subsection (a) of section 1532 of the Internal Revenue Code preceding § 403.816, the following:

The term "employer" shall not include any company by reason of its being engaged in the mining of coal, the supplying of coal to an employer where delivery is not beyond the mine tipple, and the operation of equipment or facilities therefor, or in any of such activities. (As amended by section 1 of the Act approved August 13, 1940 (54 Stat. 785))

7. By inserting at the end of subsection (b) of section 1532 of the Internal Revenue Code preceding § 403.816, the following:

The term "employee' shall not include any individual while such individual is engaged in the physical operations consisting of the

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[1] Under Title II of the Social Security Act, As Amended, Effective January 1, 1940.

[2] 5 F.R. 1849, 4169.

[3] These regulations are issued under authority contained in sections 1102, 205 (a) of the Social Security Act (49 Stat. 647, 53 Stat. 1368; 42 U.S.C., Supp. V, 1302, 405 (a)), and section 5 of the Act approved August 13, 1940 (54 Stat. 785).

mining of coal, the preparation of coal, the handling (other than movement by rail with standard railroad locomotives) of coal not beyond the mine tipple, or the loading of coal at the tipple. (As amended by section 3 of the Act approved August 13, 1940 (54 Stat. 785))

8. By inserting preceding § 403.816, the following:

SECTION 4 (a) AND SECTION 4 (c) OF THE ACT APPROVED AUGUST 13, 1940 (54 STAT. 785)

SEC. 4 (a). The laws hereby expressly amended, the Social Security Act, approved August 14, 1935, and all amendments thereto, shall operate as if each amendment herein contained had been enacted as a part of the law it amends, at the time of the original enactment of such law.

SEC. 4 (c). Nothing contained in this Act shall operate (1) to affect any annuity, pension, or death benefit granted under the Railroad Retirement Act of 1935 or the Railroad Retirement Act of 1937, prior to the date of enactment of this Act, or (2) to include any of the services on the basis of which any such annuity or pension was granted, as employment within the meaning of section 210 (b) of the Social Security Act or section 209 (b) of such Act, as amended.

* * *

9. By amending § 403.816 to read as follows:

§ 403.816 *Railroad industry, employees and employee representatives under section 1532 of the Internal Revenue Code, as amended by the Act approved August 13, 1940 (54 Stat. 785).* Services performed by an individual as an "employee" or as an "employee representative," as those terms are defined in Section 1532 of Subchapter B of Chapter 9 of the Internal Revenue Code (which subchapter corresponds to and, effective April 1, 1939, superseded the Carriers' Taxing Act of 1937) are excepted. Services by an individual in the physical operations consisting of the mining of coal, the preparation of coal, the handling (other than movement by rail with standard railroad locomotives) of coal not beyond the mine tipple, or the loading of coal at the tipple, upon the basis of which any annuity or pension was granted under the Railroad Retirement Act of 1935 or the Railroad Retirement Act of 1937 prior to August 13, 1940, are also excepted.

In pursuance of sections 205 (a) and 1102 of the Act, and section 5 of the Act approved August 13, 1940 (54 Stat. 785), the foregoing regulations this day adopted by the Board are hereby prescribed this February 13, 1941.

[SEAL] SOCIAL SECURITY BOARD,
A. J. ALTMEYER,
Chairman.

Approved February 20, 1941.

PAUL V. MCNUTT,
Federal Security Administrator.

[F. R. Doc. 41-1314; Filed, February 24, 1941; 10:30 a. m.]

TITLE 24—HOUSING CREDIT

CHAPTER I—FEDERAL HOME LOAN BANK BOARD

PART 3—MEMBERS OF BANKS

AMENDMENT RELATING TO THE FILING OF ANNUAL REPORTS BY BANK MEMBERS

Be it resolved, That, effective February 21, 1941, § 3.4 of the Rules and Regulations for the Federal Home Loan Bank System is amended to read as follows:

§ 3.4 *Reports.* Each member shall make an annual report of its affairs as of the end of its fiscal year, or as of a date which may be mutually agreed upon by the Bank and such member, upon forms prescribed by the Board. Two copies of such annual report shall be forwarded within thirty days after the end of such reporting year to the member's Bank, one copy of which shall thereupon be transmitted by the Bank to the Governor of the Federal Home Loan Bank System. (Sec. 17 of F.H.L.B.A., 47 Stat. 736; 12 U.S.C. 1437)

Be it further resolved, That this amendment is deemed to be of a minor character within the provisions of subsection (b) of § 8.3 of the Rules and Regulations for the Federal Home Loan Bank System.

Adopted by the Federal Home Loan Bank Board on February 19, 1941.

[SEAL] J. FRANCIS MOORE,
Secretary.

[F. R. Doc. 41-1302; Filed, February 21, 1941; 1:36 p. m.]

TITLE 30—MINERAL RESOURCES

CHAPTER III—BITUMINOUS COAL DIVISION

[Docket No. A-159]

PART 328—MINIMUM PRICE SCHEDULE, DISTRICT NO. 8

ORDER OF THE DIRECTOR GRANTING PERMANENT RELIEF IN THE MATTER OF THE PETITION OF DISTRICT BOARD 8 FOR CHANGE IN CLASSIFICATION IN SIZE GROUPS 18-21 OF COALS PRODUCED BY WEST VIRGINIA COAL AND COKE CORPORATION

An original petition having been filed with the Bituminous Coal Division on October 15, 1940, by District Board 8, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, seeking a revision, for shipment into all market areas, of the price classifications of the coals produced by the West Virginia Coal & Coke Corporation, a code member in District 8, at its Micco No. 3 Mine, in Size Groups 18-21; and

A hearing having been held before a duly designated Examiner of the Bituminous Coal Division at a hearing room of the Division, Hotel Washington, Washington, D. C., on November 25, 1940; and

The parties to this proceeding having waived the preparation and filing of a report by the Examiner, and the matter thereupon having been submitted to the Director; and

The Director having made Findings of Fact and Conclusions of Law in this matter, dated February 21, 1941, which are filed herewith:

It is ordered, That § 328.11 *Alphabetical list of code members* be amended in accordance with the provisions of this order, to indicate that the effective price classifications for the coals produced by the West Virginia Coal & Coke Corporation at its Micco No. 3 Mine, in Size Groups 18, 19, 20 and 21, be and the same are hereby modified from "G" to "E," with consequent modification of the effective minimum prices for shipment into all market areas; *Provided, however,* That said modified classifications and prices shall not become effective until 10 days from the date of this Order.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1335; Filed, February 24, 1941; 11:48 a. m.]

[Docket Nos. A-644 and A-645]

PART 329—MINIMUM PRICE SCHEDULE, DISTRICT NO. 9

ORDER OF CONSOLIDATION AND ORDER GRANTING TEMPORARY RELIEF AND CONDITIONALLY PROVIDING FOR FINAL RELIEF IN THE MATTER OF THE PETITIONS OF DISTRICT BOARD 9 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT NO. 9 NOT HERETOFORE CLASSIFIED AND PRICED

Original petitions, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party, requesting the establishment of price classifications and minimum prices for the coals of certain mines in District No. 9, not heretofore classified and priced; and

The Director finding that a reasonable showing of necessity has been made for the granting of temporary relief in the manner hereinafter set forth; and

No petitions of intervention having been filed with this Division in the above-entitled matters; and

The Director deeming his action necessary in order to effectuate the purposes of the Act;

It appearing that the above-entitled matters raise analogous issues;

It is ordered, That the above-entitled matters be, and they hereby are, consolidated;

It is further ordered, That, pending final disposition of the above-entitled matters, temporary relief be and the same hereby is granted as follows: Commencing forthwith § 329.5 (*Alphabetical list of code members*) is amended by adding thereto "Supplement R", § 329.6 (*General prices*) is amended by adding thereto "Supplement A", § 329.6 (b) (2) (*Prices for shipments by river* * * *) is amended by adding thereto "Supplement B", § 329.24 (*General prices per net ton for shipment into any market area*) is amended by adding thereto "Supplement T", which supplements dated February 14, 1941, are hereinafter set forth.

It is further ordered, That pleadings in opposition to the original petitions in the above-entitled matter, and applications to stay, terminate, or modify the temporary relief herein granted may be filed with the Division within forty-five (45) days from the date of this Order, pursuant to Rules and Regulations Governing Practice and Procedure before the Bituminous Coal Division in Proceedings Instituted Pursuant to section 4 II (d) of the Bituminous Coal Act of 1937.

It is further ordered, That the relief herein granted shall become final sixty (60) days from the date of this Order, unless the Director shall otherwise order.

Dated: February 14, 1941.

[SEAL] H. A. GRAY,
Director.

TEMPORARY AND CONDITIONALLY FINAL EFFECTIVE MINIMUM PRICES FOR DISTRICT NO. 9

NOTE: The material contained in these Supplements is to be read in the light of the classifications, prices, instructions, exceptions and other provisions contained in Part 329, Minimum Price Schedule for District No. 9 and Supplements thereto.

FOR ALL SHIPMENTS EXCEPT TRUCK

§ 329.5 *Alphabetical list of code members*—Supplement R

Mine index No.	Code member index	Mine	Seam	Freight origin group No.
670	Allen Coal Company	Allen	No. 9	50
720	Brown & Newcomb (Emmitt Newcomb)	B & N	No. 9	50
446	Callaway, R. W	Callaway	No. 9	20
839	Christian, Harold	Beulah Midnight	No. 11	10
297	Gamblin, Etna	Dempster Strip (Etna Gamblin)	No. 9	10
455	Harris, J. F	Harris	No. 9	50
623	Henry, Vaughn & Lansdale (Tom Henry)	Hammack	No. 9	20
627	Hill & Son, J. F. (John Hill, Jr.)	Hill	No. 9	50
302	Jenkins & Manire	Jim Rich (Jenkins & Patterson)	No. 9	40
648	Jenkins & Manire (Chas. F. Jenkins)	Jenkins & Manire #2	No. 9	10
457	Johnson, V. L. (Johnson Coal Coal Co.)	Johnson	No. 9	50
98	Laffoon & Goodacker (Dexter Laffoon)	L & G	No. 9	10
695	Lofton Coal Co	Lofton	No. 9	50
450	McGraw, Robert	McGraw	No. 9	20
316	Ninth Vein Coal Company	Ninth Vein	No. 9	40
579	Spears, Robert	Jim Bob	No. 11	10
330	Walker, J. B	Walker	No. 9	30

§ 329.6 *General prices*—Supplement A. The f. o. b. mine prices for coal shipped by Mine Index Nos. 670, 720, 446, 839, 297, 455, 623, 627, 302, 648, 457, 98, 695, 450, 316, 579 and 330 to any Market Area in any size group and for any use are the same as the prices shown for Beech Creek Coal Company, Beech Creek mine, Mine Index No. 1, in Part 329, Minimum Price Schedule for District No. 9, for All Shipments Except Truck.

§ 329.7 (b) (2) *Prices for shipment by river*—Supplement B. The f. o. b. mine prices for river (free alongside) shipments for Mine Index Nos. 670, 720, 446, 839, 297, 455, 623, 627, 302, 648, 457, 98, 695, 450, 316, 579 and 330 to any Market Area in any size group and for any use, including railroad locomotive fuel, are the same as the prices shown for Beech Creek Coal Company, Beech Creek mine, Mine Index No. 1, in Part 329, Minimum Price Schedule for District No. 9, for All Shipments Except Truck.

SUPPLEMENT T—TEMPORARY AND CONDITIONALLY FINAL EFFECTIVE MINIMUM PRICES FOR DISTRICT NO. 9

NOTE: The material contained in this "Supplement T" is to be read in the light of the classifications, prices, instructions, exceptions and other provisions contained in Part 329, Minimum Price Schedule for District No. 9 and Supplements thereto.

FOR TRUCK SHIPMENTS

§ 329.24 *General prices in cents per net ton for shipment into any market area*

Code member index	Mine index No.	Mine	Seam	Prices and size group Nos.																		
				1, 2	3	4	5	6	7	8	9	10, 11, 12	13, 14	15	17	18, 19, 20	21, 22	23, 24	25	26, 27	28, 29
BUTLER COUNTY																						
House, Sammie R	872	Sammie	Stray	235	225	215	175	170	160	160	150	140	110	50						120	115
CHRISTIAN COUNTY																						
Boyd, John	878		#9	230	220	210	200	195	185	185	180	175	160	100						170	165
DAVIESS COUNTY																						
Payne, Billie	873	Hazel	#9	205	195	185	175	170	160	160	150	140	110	50						120	115
EDMONSON COUNTY																						
Carroll, Noel	876	Tar		200	200	200	200	200	175	160	150	140	110	50						120	115
HOPKINS COUNTY																						
Laffoon & Goodacker (Dexter Laffoon)	98	L & G	#9	205	195	185	175	170	160	160	150	140	110	50						120	115
MUHLENBERG COUNTY																						
McDonald & Watkins	877	M & W	#9	205	195	185	175	170	160	160	150	140	110	50						120	115
OHIO COUNTY																						
Embry & Sons	874	E & S	#9	205	195	185	175	170	160	160	150	140	110	50						120	115
WEBSTER COUNTY																						
Brown, Dallas	875	Brown	#11	205	195	185	175	170	160	160	150	140	110	50						120	115

[F. R. Doc. 41-1300; Filed, February 21, 1941; 11:52 a. m.]

[Docket Nos. A-541, A-567, A-584]

PART 330—MINIMUM PRICE SCHEDULE, DISTRICT NO. 10

ORDER AMENDING ORDER GRANTING TEMPORARY RELIEF AND CONDITIONALLY PROVIDING FOR FINAL RELIEF IN THE MATTER OF THE PETITIONS OF DISTRICT BOARD 10 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT NO. 10 NOT HERETOFORE CLASSIFIED AND PRICED

Original petitions in Dockets Nos. A-567 and A-584, and an original petition and an amendment thereto in Docket No. A-541, having been duly filed with this Division by the above-named party, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, the Director, on January 30, 1941, issued an Order Granting Temporary Relief and Conditionally Providing for Final Relief in the above-entitled matters.

Thereafter, on February 13, 1941, the original petitioner duly filed with this Division a further amendment to its petition, as amended, in Docket No. A-541, alleging that the shipping point for Mine Index No. 939 was erroneously designated in said petition and in the aforesaid Order of the Director, as Decatur, Illinois, instead of as Riverton, Illinois, and praying that the aforesaid Order of January 30, 1941, be amended so as to designate Riverton, Illinois, as the shipping point for Mine Index No. 939.

Now, therefore, it is ordered, That the Order of January 30, 1941, Granting Temporary Relief and Conditionally Providing for Final Relief in Docket A-541[1] is amended so as to designate Riverton, Illinois, as the shipping point for Mine Index No. 939. This amendment shall be reflected in § 33.2 *Mine Index Numbers.*

Notice is hereby given that objections to the aforesaid change in the shipping point for Mine Index No. 939 may be filed within fifteen (15) days from the date hereof.

Dated: February 21, 1941.

[SEAL] H. A. GRAY, *Director.*

[F. R. Doc. 41-1336; Filed, February 24, 1941; 11:49 a. m.]

[Docket No. A-655]

PART 330—MINIMUM PRICE SCHEDULE, DISTRICT NO. 10

ORDER GRANTING TEMPORARY RELIEF AND CONDITIONALLY PROVIDING FOR FINAL RELIEF IN THE MATTER OF THE PETITION OF DISTRICT BOARD 10 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT NO. 10 NOT HERETOFORE CLASSIFIED AND PRICED

An original petition, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party, requesting the establishment, both temporary and permanent, of price classifications and minimum prices for the coals of certain mines in District No. 10 not heretofore classified and priced; and

The Director finding that a reasonable showing of necessity has been made for the granting of temporary relief in the manner hereinafter set forth; and

No petitions of intervention having been filed with the Division in the above-entitled matters; and

The Director deeming his action necessary in order to effectuate the purposes of the Act;

It is ordered, That, pending final disposition of the above-entitled matter, temporary relief be, and the same hereby is, granted as follows: Commencing forthwith, § 330.25 is amended by adding thereto the supplement dated February 14, 1941, which is hereinafter set forth.

It is further ordered, That pleadings in opposition to the original petition in the above-entitled matter, and applications to stay, terminate, or modify the temporary relief herein granted may be filed with the Division within forty-five (45) days from the date of this Order, pursuant to the Rules and Regulations Governing Practice and Procedure before the Bituminous Coal Division in Proceedings Instituted Pursuant to section 4 II (d) of the Bituminous Coal Act of 1937.

It is further ordered, That the relief herein granted shall become final sixty (60) days from the date of this Order, unless the Director shall otherwise order.

Dated: February 14, 1941.

[SEAL] H. A. GRAY, *Director.*

TEMPORARY AND CONDITIONALLY FINAL EFFECTIVE MINIMUM PRICES FOR DISTRICT NO. 10

NOTE: The material contained in this "Supplement" is to be read in the light of the classifications, prices, instructions, exceptions and other provisions contained in Part 330, Minimum Price Schedule for District No. 10 and Supplements thereto.

TRUCK SHIPMENTS

§ 330.25 *General prices in cents per net ton for shipment into all market areas*

Code member index	Mine index No.	Mine	Seam	Prices and size group Nos.														
				1	2	3	4	5	6	7	8	9	10	11	12	13	14	15
SECTION NO. 2																		
LA SALLE COUNTY																		
Balett & Talbot Coal Co.	1436	Balett & Talbot	6	325	320	315	305	300	295	240	285	205	200	200	200	170	160	105
SECTION NO. 5																		
GREENE COUNTY																		
Sheahan, Wm.	1433	Sheahan's		255	250	245	235	230	225	170	165	160	155	155	155	125	115	60
SECTION NO. 7																		
VERMILION COUNTY																		
Bales, Perry	1437	Perry Bales	7	240	235	230	220	215	210	170	165	160	155	155	155	125	115	60
Troike, W. H.	1434	Troike	7	240	235	230	220	215	210	170	165	160	155	155	155	125	115	60
Wilson, Walter (Wilson & Grimes).	1432	Old Star	7	240	235	230	220	215	210	170	165	160	155	155	155	125	115	60
SECTION NO. 10																		
SALINE COUNTY																		
McCoy, Priest & Allen (Jas. McCoy).	1435	McCoy, Priest & Allen.	2	215	215	215	200	195	190	180	160	150	150	150	150	130	130	65

[F. R. Doc. 41-1301; Filed, February 21, 1941; 11:52 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

CHAPTER II—CORPS OF ENGINEERS, WAR DEPARTMENT

PART 206—FISHING AND HUNTING REGULATIONS[1]

§ 206.50 *Chesapeake Bay, Maryland and Virginia, and its tributary waters; fishing.*

* * * * *

(d) *Requirements.* (1) No single fishing structure shall have a total length greater than 1,200 feet, except in waters on the Eastern Shore south of the entrance to Eastern Bay, where the allowable lengths of single structures shall be not be more than 1,800 feet. Between successive fishing structures in the same row, clear and unobstructed intervals of at least 200 feet shall be maintained, and adjoining rows of fishing structures shall be at least 200 feet apart. In addition a clear passageway at least 200 feet wide shall be maintained, reaching from all regular navigable channels to all established boat landings. All stakes shall project not less than 4 feet above the surface of the water at all stages of the tide. Any stake not complying with this condi-

[1] 6 F. R. 921 (February 11, 1941)

[1] § 206.50 (d) (1) is amended in its application to waters within the State of Virginia for the 1941 fishing season.

tion shall be withdrawn. (Secs. 10, 12, River & Harbor Act, March 3, 1899, 30 Stat. 1151; 33 U.S.C. 403, 406) [Regs. Feb. 6, 1941 (E.D. 7221 (Chesapeake Bay) 133/1)]

[SEAL] E. S. ADAMS,
Major General,
The Adjutant General.

[F. R. Doc. 41-1312; Filed, February 24, 1941; 9:55 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

CHAPTER I—INTERSTATE COMMERCE COMMISSION

ORDER AMENDING ORGANIZATION SCHEDULE

At a General Session of the Interstate Commerce Commission, held at its office in Washington, D. C., on the 18th day of February, A. D. 1941, section 17 of the Interstate Commerce Act, as amended (U.S.C. title 49, sec. 17), being under consideration:

It is ordered, That the organization schedule and assignment of work adopted November 15, 1940,[1] be, and it is hereby, further amended by adding thereto as the tenth paragraph under the heading "To Individual Members of the Commission" the following:

The Commissioner to whom the Bureau of Law reports: Postponement of the effective date of orders in proceedings which are the subject of suits brought in a court to enjoin, suspend, or set aside the decision, order, or requirement therein.

And it is further ordered, That the eleventh paragraph of said organization schedule as herein amended be, and it is hereby, amended to read as follows:

The Chairman of the respective divisions: merely procedural matters in any formal case or pending matter, and extensions of time for compliance with orders (except in investigations on the Commission's own motion), in any such case or matter which is not the subject of a suit in court, when the subject matter or particular proceeding has been or is assigned or referred to the division: *Provided,* That if the proceeding has been assigned to a Commissioner for administrative handling or preparation of report, such Commissioner shall act on such procedural matters (including extensions of time for compliance with orders); and if the subject matter or particular proceeding has not been assigned or referred to a division or to a Commissioner, the chairman of Division One may act on such matters.

By the Commission.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 41-1343; Filed, February 24, 1941; 11:50 a. m.]

[1] 5 F.R. 4695.

Notices

WAR DEPARTMENT.

[Contract No. W-ORD-480]

SUMMARY OF EMERGENCY PLANT FACILITIES AND COST-PLUS-A-FIXED-FEE CONSTRUCTION, EQUIPMENT, AND OPERATION CONTRACT

CONTRACTOR: HUMBLE OIL & REFINING COMPANY, HOUSTON, TEXAS

Fixed fee: $1.00 under Title II, $300,000.00 under Title III.

Contract for: Acquiring site, designing, constructing, equipping and operating a plant for the manufacture of toluol.

Place: Baytown, Texas.

Estimated cost of project: $10,760,000.00 under Title II.

Estimated cost of operation: $7,500,000.00 under Title III.

Estimated cost of emergency plant facilities: $1,097,000.00 under Title VI.

The equipment, supplies, and services to be obtained by this instrument are authorized by, are for the purposes set forth in, and are chargeable to the following procurement authorities, the available balances of which are sufficient to cover the cost of same.

ORD 7395 P 99 A 0141-01
ORD 7396 P 99 A 0141-01
ORD 6949 P 11—0270 A 1005-01

This Contract, entered into this 21st day of October 1940.

Title I—Acquisition of Site

ARTICLE I. *Acquisition of site.* In consideration of the sum of ten thousand dollars ($10,000) in cash to be paid to the Contractor by the Government, and subject to the provisions, conditions and limitations hereinafter stated, the Contractor agrees to convey to the Government by general warranty deed, with provisions for a conditional limitation under which the title of the Government shall terminate and revert to the Contractor upon the abandonment by the Government of the plant herein agreed to be constructed and the removal thereof by the Government, or upon its abandonment and sale to a third party and the removal thereof by such third party, or upon his failure after a reasonable time to remove said plant, that certain tract of land out of the William Scott Upper League in Harris County, Texas. Upon the abandonment of the plant and its removal or sale to the Contractor or others and the reinvestiture in the Contractor of title to said land as above provided, the Contractor agrees to return to the Government the above mentioned sum of ten thousand dollars ($10,000.00), without interest.

Title II—Engineering, Design, Construction and Equipping of the Plant

ART. II-A. *Statement of work.* The Contractor shall, in the shortest reasonable time, furnish the labor, materials, tools, machinery, equipment, facilities, supplies not furnished by the Government, and services, and do all things necessary for the completion of the following work:

(a) Furnish, subject to the approval of the Contracting Officer, all architectural and engineering services covering the design, preparation of drawings, plans, specifications and field engineering and supervision necessary for the efficient execution and coordination of the work provided for under this Title.

(b) Construct and equip on said site, in accordance with the approved drawings, specifications, and instructions provided for herein, a plant (hereinafter referred to as the "Plant") for the manufacture of toluol.

ART. II-B. *Estimates.* It is estimated that the total cost of the work under this Title II will be approximately Ten Million Seven Hundred Sixty Thousand Dollars ($10,760,000) (including the cost of the land, but excluding the Contractor's fee).

ART. II-C. *Consideration.* In consideration for the Contractor's undertaking under this Title II, the Contractor shall receive the following:

(a) Reimbursement for expenditures as provided in Title IV.

(b) Rental for Contractor's construction equipment as provided in Title IV.

(c) A fixed fee in the amount of one dollar ($1.00) which shall constitute complete compensation for the Contractor's services under this Title II.

Title III—Operation

ART. III-A. *Statement of work.* 1. Concurrently with the performance of the work required of it under Title II hereof, the Contractor shall perform all organization service in connection with the planning of and the making of all necessary preparations for the operation of the Plant, including the operation of the pilot plant and the training of key men, and all other services incident to setting up an efficient and going operating force.

2. Upon the completion of the Plant in accordance with the terms of Title II hereof, the Contractor shall, acting as an independent contractor, proceed to operate it for the production of toluol in the quantity set forth in this article.

ART. III-B. *Estimates.* It is estimated that the total cost of the work under this Title III of the first year's operation producing the initial estimated * * * gallons of toluol will be approximately seven million five hundred thousand dollars ($7,500,000), excluding the Contractor's fee.

ART. III-C. *Consideration.* In consideration for the Contractor's undertaking under this Title III, the Contractor shall receive the following:

1. Reimbursement for expenditures as provided in Title IV.

2. A fixed fee of three hundred thousand dollars ($300,000) for the first year of operation of said Plant hereunder, payable in twelve (12) equal monthly installments; which fee shall constitute complete compensation for the Contractor's services under this Title III, including profit.

Title IV—Cost of the Work

ART. IV–A. *Reimbursement for Contractor's expenditures.* The Government shall bear all cost and expense of every character and description incurred by the Contractor, when approved or ratified by the Contracting Officer, in connection with the design, construction, equipping and operating of said Plant, or any part thereof.

Rental for Contractor's equipment. Rental shall be paid to the Contractor for such construction plant or parts thereof as it may own and furnish, at not to exceed the rates approved by the Contracting Officer.

ART. IV–B. *Payments.* 1. *Reimbursement for cost.* The Government shall currently reimburse the Contractor for expenditures made in accordance with Article IV–A of this Title IV upon certification to and verification by the Contracting Officer of the original certified payrolls for labor, or the original paid invoices for materials or other original papers, or other evidence satisfactory to the Contracting Officer. Generally, reimbursement will be made weekly but may be made at more frequent intervals if the conditions so warrant.

2. *Rental for Contractor's equipment.* Rental as provided in Article IV–A of this Title IV for such construction plant, or parts thereof, shall be paid monthly upon presentation of proper vouchers.

3. *Payment of the fixed fees.* The fixed fees prescribed in Articles II–C and III–C shall be compensation in full for the services of the Contractor, including profit and shall be payable as provided therein.

5. *Final Payment.* Upon completion of the work of constructing and equipping the Plant under Title II hereof, and its final acceptance in writing by the Contracting Officer, and again upon the completion of the first year's operation under the provisions of Title III, hereof, the Government shall pay to the Contractor the unpaid balance of the cost of the work under Titles II and III, respectively, determined under Title IV hereof, and of the respective fee.

ART. IV–C. *Advances.* At any time and from time to time after the execution of this contract, the Government, at the request of the Contractor and subject to a showing of the necessity therefor and the approval thereof by the Chief of Ordnance, shall advance to the Contractor, without payment of interest therefor by the Contractor, not to exceed a total aggregate sum representing * * * percent of the estimated total cost of the contract.

Title V—Termination

ART. V. *Termination of Contract by Government.* Should the Contractor at any time refuse, neglect, or fail to prosecute the work with promptness and diligence, or default in the performance of any of the agreements herein contained, or should conditions arise which make it advisable or necessary in the interest of the Government to cease work under this contract, the Government may terminate this contract by a notice in writing from the Contracting Officer to the Contractor.

Title VI—Emergency Plant Facilities

Except as Otherwise Specifically Provided in This Title VI, the Provisions of Titles I, II, III, IV (Except Those Provisions of Title IV Which Are Specifically Made Applicable by the Terms of Title VI), and VII (Except the Provisions of Articles I, J, M, O, P and Q) Shall Not Be Applicable to This Title VI, Anything to the Contrary in Such Titles Notwithstanding.

ART. VI–A. *Necessity for emergency plant facilities.* In view of the present emergency and the necessity of making possible the manufacture and delivery by the Contractor of the said toluol in accordance with the terms of Title III and within the time therein specified, and in accordance with provisions of law enacted to provide for national defense in connection with said emergency, the Government is willing in consideration of the execution by the Contractor of this contract and of the further agreement by the Contractor contained in this Title VI, to provide the Contractor with funds in reimbursement of expenditures to be made for the acquisition or construction by the Contractor of Emergency Plant Facilities to the extent and on the terms and conditions herein set forth.

ART. VI–B. *Emergency plant facilities to be acquired or constructed.* The Contractor shall, with due expedition by contract with others or otherwise, acquire or construct the Emergency Plant Facilities generally described above and set forth in further detail in Appendix A, furnishing or causing to be furnished the labor, materials, tools, machinery, equipment, facilities, supplies and services, and doing or causing to be done all other things necessary for the acquisition or construction thereof. The detailed plans and specifications for such Emergency Plant Facilities will be prepared by the Contractor as soon as practicable and submitted to the Contracting Officer for approval. Such plans and specifications when prepared and approved will be included in "Appendix A".

ART. VI–C. *Estimates.* It is estimated that the total cost of the acquisition and construction of the Emergency Plant Facilities will be approximately one million ninety-seven thousand dollars ($1,097,000.00).

ART. VI–D. *Changes.* The Contractor may at any time make changes in or additions to the drawings and specifications. *Provided,* however, if any such change will cause delay or a material alteration in the character of the work to be done under this contract, or will result in an estimated increase in the cost of the Emergency Plant Facilities of more than ten thousand dollars ($10,000.00), the written consent of the Contracting Officer to such change shall be first obtained.

ART. VI–E. *Title.* The title to all the Emergency Plant Facilities shall be in the Contractor. The Contractor shall, however, allow no mortgage or other lien to be an encumbrance upon the Emergency Plant Facilities (including the lien of any mortgage now existing upon property of the Contractor and any lien existing upon the Facilities prior to their acquisition).

ART. VI–F. *Reports—final cost certificate.* Not later than the 15th day of each full calendar month after the date hereof, the Contractor shall furnish the Contracting Officer with a monthly statement, certified as correct by the Contractor; and within 30 days after the close of each calendar year, the Contractor shall furnish the Contracting Officer with an annual statement certified as correct by an independent public accountant approved by the Contracting Officer. Such statements shall show in detail the amount, if any, expended during the preceding calendar month or year, respectively, in connection with the acquisition or construction of the Emergency Plant Facilities, which amount shall not include the cost of obtaining and furnishing such annual statement or any profit to the Contractor but may include an amount to cover the costs of the services performed by the Contractor's organization and other carrying charges during construction to the extent set forth in Appendix A and interest on funds expended as provided in Section 2 of this Article VI–F.

Except as provided in Section 1 of this Article VI–F and specifically set forth in Appendix A, no salaries of the Contractor's executive officers, no part of the expense incurred in conducting the Contractor's main office or regularly established branch offices, and no overhead expenses of the Contractor of any kind shall be included in the cost of the work as set forth in the Final Cost Certificate.

After the filing of the Final Cost Certificate in connection with the Emergency Plant Facilities described in Appendix A, if the Contracting Officer determines that further Emergency Plant Facilities are required for the purpose contemplated in this Title VI, he may enter into a contract amending this Title VI and Appendix A; and the additional cost of such further Emergency Plant Facilities shall be determined by the filing of an amendment to the Final Cost Certificate in the same manner as hereinbefore provided in respect of the Final Cost Certificate.

ART. VI–G. *Payments to Contractor by Government.* The amount to be paid by the Government to the Contractor

under this Title VI on account of the Emergency Plant Facilities set forth in Appendix A, as from time to time amended, shall be the total amount set forth in the Final Cost Certificate: *Provided*, That the total amount shall not in any event exceed one million ninety-seven thousand dollars ($1,097,000.00), or such larger sum as the Secretary of War may from time to time approve. In the event changes, additions, replacements of equipment, and changes or modifications of facilities are made in connection with the Emergency Plant Facilities with written consent of the Contracting Officer in accordance with the provisions of Article VI–D, or in the event this Title VI and Appendix A are amended as provided in Section 3 of Article VI–F or an additional Final Cost Certificate is filed pursuant to Section 1 of Article VI–I, the amount to be paid by the Government shall be the total of the amounts set forth in the Final Cost Certificate and any and all amendments thereto and any Additional Final Cost Certificate. The amount to be paid by the Government is herein sometimes referred to as the Government Reimbursement for Plant Costs.

There shall become due by the Government to the Contractor as Government Reimbursement for Plant Costs, on the last day of each of sixty (60) consecutive calendar months beginning with such first calendar month, 1/60th of the Government Reimbursement for Plant Costs so determined and the Government shall pay such amounts to the Contractor when and as the same become due; provided that if the Final Cost Certificate is not filed with the Government until after the calendar month in which the acquisition, construction and installation of the Emergency Plant Facilities are completed, then the Government shall pay to the Contractor on the last day of the calendar month succeeding the month in which the Final Cost Certificate is delivered to the Government the amount then payable in respect of the calendar months then elapsed beginning with the calendar month following the completion of the acquisition, construction and installation of the Emergency Plant Facilities; and thereafter the Government shall pay to the Contractor on the last day of each month 1/60th of the Government's Reimbursement for Plant Costs, as established by the Final Cost Certificate until the entire amount thereof shall have been paid.

All costs incurred and all payments made by the Contractor prior to and in connection with the termination of this Title VI in connection with the termination of any contracts or commitments entered into by the Contractor for the purposes of this Title VI, and in connection with the performance in whole or in part of any such contracts or commitments which shall not be terminated or until the same are terminated, shall be a part of the Government Reimbursement for Plant Costs and shall be included in the Final Cost Certificate provided to be filed under Section 1 of Article VI–F hereof. In the event of such termination of this Title VI, payment to the Contractor of the Government Reimbursement for Plant Costs shall be made promptly and in any event not later than 60 days following the date of filing of the Final Cost Certificate.

ART. VI–H. *Disposition of emergency plant facilities on termination or completion of contract.* 1. *Notice of termination.* The Contracting Officer may at any time give written notice (hereinafter called the Termination Notice) to the Contractor terminating this Title VI. Upon receipt of the Termination Notice the Contractor, in the event that the acquisition and construction of the Emergency Plant Facilities shall not have been completed, shall proceed with the steps to be taken by it under Section 4 of Article VI–G. If, during any 90-day period after the completion of the acquisition and construction of the Emergency Plant Facilities, the same are not used to a substantial extent by the Contractor for furnishing the Government with supplies, or if, prior to such completion, the Government shall terminate in substantial part the arrangements between the Contractor and the Government for supplies under Title III hereof, or if the Government shall fail, the Contractor not being in default hereunder, to make to the Contractor payment of any installment of the Government Reimbursement for Plant Costs within ninety days after the same shall have become due, the Contractor may give a similar termination notice to the Contracting Officer after the expiration of such 90-day period or after such termination of arrangements for supplies, respectively.

2. *Rights of the Contractor.* (a) Upon giving notice in writing (hereinafter referred to as the Retention Notice) within ninety (90) days after Termination Notice is given by either party, or within ninety (90) days after the termination of this Title VI under the provisions of Section 2 of Article VI–G hereof, the Contractor shall have the right to retain for its own use outright, free of any interest of the Government, the entire Emergency Plant Facilities. If Contractor exercises this right, subject to the provisions of (d) of this section, it shall (1) pay to the Government an amount equal to the cost of such facilities as established by the Final Cost Certificate and the Final Cost Certificate as amended and by any Additional Final Cost Certificates, reduced to the extent appropriate for the application or payment of excess insurance proceeds, if any, under Section 1 of Article VI–I hereof, (or, if the acquisition and construction of the Emergency Plant Facilities shall not have been completed, the cost as established as of the date of the Retention Notice by an approved public accountant) less an amount representing depreciation, obsolescence and loss of value due to use for National Defense purposes for each year or portion of a year elapsed from the date of the acquisition or completion of construction thereof to the date of the Termination Notice at the rate or rates specified in Appendix A; or (2) pay to the Government a price which shall represent the fair value of such facilities as of the date of the Retention Notice, such fair value to be determined in the manner provided under paragraph (b) of this section.

(b) The Contractor shall have the right to negotiate with the Contracting Officer with reference to the retention, free of any interest of the Government, of the entire Emergency Plant Facilities which the Contractor shall have designated in the Retention Notice for retention, upon the payment to the Government of an amount less than the amount determined under paragraph (a) (1) above, representing the fair value thereof as of the date of the Retention Notice; and upon the establishment between the Contractor and the Contracting Officer of such fair value and approval of the same by the Secretary of War, the Contractor shall have the same right of retention upon payment or tender of the amount or upon settlement of the balance due to or from the Government under paragraph (d) of this section. In the event that, within a period of 90 days from the date of Retention Notice, the Contractor and Contracting Officer are unable to agree upon the fair value of the entire Emergency Plant Facilities, or in the event that the fair value thereof so agreed upon shall not be approved by the Secretary of War, the Contractor shall, upon the expiration of said period or earlier at the election of the Contractor, either pay to the Government in respect of the retention of any such facilities, the applicable amount under Paragraph (a) (1) of this section or transfer the same promptly to the Government free and clear of all encumbrances not theretofore consented to by the Contracting Officer, and, at the Contractor's election, require the removal of all or any part thereof by the Government from the premises altogether.

(c) If no Retention Notice be given within the time allowed for such notice under section 2 of this Article VI–H, the Contractor shall promptly upon the termination of the time allowed for such notice transfer the entire Emergency Plant Facilities to the Government free and clear of all encumbrances not theretofore consented to by the Contracting Officer.

(d) Any sums to be paid by the Contractor to the Government under paragraph (a) and/or paragraph (b) of this Section shall be reduced by the amount of any sums to be paid by the Government to the Contractor on account of Government Reimbursement for Plant Costs under Article VI–G hereof and not theretofore paid by the Government; and, if the sum so to be paid by the Government to the Contractor and then remaining unpaid shall exceed the

amount to be paid by the Contractor under both of said paragraphs, the Government shall promptly pay to the Contractor the amount of such excess: *Provided, however,* That in the event the Contractor shall retain under paragraph (a) or (b) hereof any facility, the acquisition or construction of which is not complete at the date of the Retention Notice and in respect of which, therefore, no payment has been made by the Government, the Contractor shall retain the same without the payment of any sum to the Government, and the amount of the Government Reimbursement for Plant Cost shall be the difference between the Plant Cost to Contractor and the sum that Contractor should pay under paragraphs (a) or (b) whichever one is applicable. In the event that the Contractor shall elect to retain none of the Emergency Plant Facilities under either paragraph (a) or paragraph (b) above, upon transfer thereof to the Government, there shall become due, and the Government shall promptly pay to the Contractor, the entire balance of the sum to be paid by the Government to the Contractor on account of the Government Reimbursement for Plant Costs not theretofore paid.

(e) The Contractor shall have the right, with respect to any facilities not retained by the Contractor under paragraphs (a) or (b) of this Section, to negotiate with the Contracting Officer with reference to the leasing of all or any part thereof for such period and upon such terms, which may include provision for renewal and an option to purchase the same, as the Contractor and the Contracting Officer may agree upon, subject to the approval of the Secretary of War.

3. *Rights of the Government.* (a) In respect of any Emergency Plant Facilities which are transferred to the Government under any provisions of Section 2 of this Article VI–H and the removal of which is not required by the Contractor, the Contractor shall have the right to use the same, without cost, if and to the extent that such facilities have replaced other facilities of the Contractor and are necessary to enable it to conduct its normal operations. The Contractor shall at its expense, care for, maintain, and insure, to the extent approved or required by the Secretary of War, such facilities left in place by the Government which the Contractor is entitled under this Section to use without cost, so long as the Contractor is entitled under this Section to use same without cost, and so long as the Contractor so uses the same under this paragraph; and shall further care for and maintain to the extent above provided, all similar facilities the removal of which shall not have been required by the Contractor and which may be left in place by the Government as standby capacity, for the account of the Government, so long, subject to the provisions of paragraph (c) of this section, as the Government shall duly and promptly pay the Contractor monthly, upon the submission of duly certified invoices therefor, any and all expense incurred and paid by the Contractor in the preceding calendar month for the maintenance, care, protection, and repair of such facilities, including any and all taxes assessed thereon or in respect thereof, and all costs of insurance carried for the protection thereof and any and all other expenses and cost of every sort incident thereto: *Provided, however,* That the Contractor may at any time on 90 days' written notice to the Secretary of War, terminate the obligation to care for and maintain such facilities and require the removal of the same upon the same terms as under paragraph (b) of section 2 of this Article VI–H. Such facilities, the removal of which shall not have been required by the Contractor and which shall have been left in place by the Government, which the Contractor is not entitled to use without cost under this Section, or which shall not have been leased to the Contractor, may be removed by the Government at any time regardless of such notice from the Contractor; and facilities left in place which the Contractor is so entitled to use without cost and which are in use for or required by commitments theretofore undertaken by the Contractor, may be removed by the Government regardless of such notice from the Contractor, at any subsequent time when such removal will not impede or interfere with the Contractor's performance of such commitments.

(c) The Government agrees, so far as it lawfully may, with respect to any facilities transferred to it or removed by it pursuant to this Article VI–H, that at no time will it use the same or any of them for business or commercial purposes; provided that the Government may at any time use any of such facilities for national defense or for any purpose incident to the conduct or execution of any act of Congress or any order of the President of the United States; and the Government further agrees that if the Government desires to sell or lease such facilities or any part thereof, it will not do so without giving the Contractor, to the extent permitted by law, a reasonable opportunity to purchase or lease the facilities proposed to be sold or leased, at the same price or rental at which it is proposed to sell or lease them to any other party.

ART. VI–I. *Loss or destruction of facilities and maintenance.* 1. In the event that all of the Emergency Plant Facilities or any item or group of items thereof, prior to the transfer by the Contractor to the Government, are destroyed or damaged by the operation of any risk required to be covered in respect of such facilities by insurance under Article VI–E of this Title VI, or of any risk in respect thereof actually covered by insurance carried by the Contractor, the Contractor shall immediately notify in writing the Contracting Officer and may on its own initiative, and the Government may by written notice given within 60 days require the Contractor to apply the proceeds of the insurance coverage in respect of such facilities to the restoration, reconditioning or replacement thereof.

2. The Contractor shall be responsible, prior to the transfer thereof to the Government, for the care and maintenance of such facilities. All items of the Emergency Plant Facilities transferred by the Contractor to the Government under Article VI–H hereof shall be in a good state of maintenance and repair, except for destruction, wear or damage normally incident to the production carried on by the Contractor and for such destruction or damage arising out of causes or risks not normally incident to such production, which shall not be or have been provided for by restoration, reconditioning or replacement pursuant to paragraph (a) above.

ART. VI–L. *Assignment of Contractor's claims.* Claims for monies due or to become due to the Contractor from the Government arising out of this Title VI may be assigned to any bank, trust company or other financing institution, including any Federal lending agency; and any such assignment may cover all or any part of any claim or claims arising or to arise out of this Title VI and may be made to any one or more such institutions or to any one party as agent or trustee for two or more such institutions participating in the financing of this Title VI. Any claims so assigned may be subject to further assignment; and any bond, promissory note or other evidence of indebtedness secured by any such assignment may be rediscounted, hypothecated as collateral for a loan or credit, or sold with or without recourse. In the event of the assignment or reassignment of any claim for monies due or to become due under this Title VI the assignee thereof shall file written notice of the assignment together with a true copy of the instrument of assignment with (a) the General Accounting Office of the Government, (b) the Contracting Officer or the head of his department or agency, (c) the surety or sureties upon the bond or bonds, if any, in connection with this Title VI, and (d) with the * * * of the War Department at * * *, who is hereby designated to make all payments under this contract. In no event shall copies of any plans, specifications or other similar documents marked "SECRET" and annexed or attached to this Title VI be furnished to any assignee of any claim arising under this Title VI or to any other person not otherwise entitled to receive the same.

ART. VI–M. *Tax amortization.* Inasmuch as it is the intent of section 23 and 124 of the Internal Revenue Code, unless payments made on account of Government Reimbursement for Plant Costs are included in gross income, not to allow (1) the tax deduction for amortization over a 60-month period of the Emergency Plant Facilities or (2) the inclusion of

such payments in invested capital for purposes of the excess-profits tax, the Contractor agrees that, if such payments, to the extent they constitute reimbursements for capital expenditures made in acquisition or construction of such Emergency Plant Facilities are not includible in gross income, then for Federal tax purposes, (1) the basis of such Emergency Plant Facilities shall be computed without taking into account capital expenditures for which the Contractor has been or will be so reimbursed and (2) the amount of such reimbursements shall not be treated as paid-in surplus or contributions to capital for purposes of the excess-profits tax. In the event that the Contractor makes application to the Advisory Commission to the Council of National Defense and to the Department of War for a certificate with respect to terms contained in this contract or the necessity for any item or group of items of the Emergency Plant Facilities under sections 23 and 124 of the Internal Revenue Code in accordance with rules governing such applications and the Contractor is thereafter refused the issuance of such certificate by either such commission or the Department of War, this Title VI shall terminate forthwith with the same effect as though a termination notice had been filed pursuant to Section 1 of Article VI–H hereof.

Title VII—General

ART. VII–A. *Changes.* The Contracting Officer may, at any time, by a written order and without notice to the sureties, if any, make changes in or additions to the drawings and specifications, issue additional instructions, require additional work, or direct the omission of work covered by this contract.

ART. VII–B. *Ownership.* The title to all work, completed or in the course of construction under Title II shall be in the Government. Likewise, upon delivery at the site of the work or at an approved storage site and upon inspection and acceptance in writing by the Contracting Officer, title to all materials, tools, machinery, equipment and supplies, for which the Contractor shall be entitled to be reimbursed under Title IV shall vest in the Government.

ART. VII–E. *Special requirements.* The Contractor hereby agrees that it will:

Procure and thereafter maintain such bonds and insurance in such forms and in such amounts and for such periods of time as the Contracting Officer may approve or require.

This contract is authorized by the following law: Act of July 2, 1940 (Public No. 703, 76th Congress)

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of
Purchases and Contracts.

[F. R. Doc. 41–1308; Filed, February 24, 1941; 9:53 a. m.]

[Contract No. W 669 qm–9670 (O. I. No. 3014)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: J. P. STEVENS & COMPANY, INCORPORATED

Contract for: Cloth, Cotton, Khaki * * *.

Amount: $2,379,530.00.

Place: Philadelphia Quartermaster Depot, Philadelphia, Pa.

This Contract, entered into this twelfth day of November 1940.

Scope of this contract. The contractor shall furnish and deliver * * * linear yards Cloth, Cotton, Khaki, * * * of the types, in the widths, in the quantities, and at the prices specified in attached Schedule of Supplies for the consideration stated totaling two million, three hundred seventy-nine thousand, five hundred thirty dollars ($2,379,530.00) in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Delays—Liquidated damages. If the contractor refuses or fails to make delivery of the materials or supplies within the time specified in Article 1, or any extension thereof, the actual damage to the Government for the delay will be impossible to determine, and in lieu thereof the contractor shall pay to the Government, as fixed, agreed, and liquidated damages for each calendar day of delay in making delivery, the amount as set forth in the specifications or accompanying papers, and the contractor and his sureties shall be liable for the amount thereof.

Liquidated damages. Under the terms and conditions stipulated in Article 17 of this contract, the contractor shall pay to the Government, as liquidated damages, for each unit undelivered, a sum equal to * * * percentum of the price of each unit for each day's delay after the date or dates specified.

Bond: Furnished. Amount: $475,906.00.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to procurement authority QM 350 P2–0240 A 0515–01 the available balance of which is sufficient to cover cost of same.

This contract authorized under Procurement Directive No. P–C–114.

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of
Purchases and Contracts.

[F. R. Doc. 41–1309; Filed, February 24, 1941; 9:54 a. m.]

[Contract No. W–398–qm–8886]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: AMERICAN BANTAM CAR COMPANY

Contract for: Trucks * * *.

Amount: $1,433,385.00.

Place: Holabird Quartermaster Depot, Baltimore, Maryland.

This Contract, entered into this 18th day of November 1940.

Scope of this contract. The contractor shall furnish and deliver * * * Trucks, Total $1,433,385.00 for the consideration stated and in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Delays—Liquidated damages. If the contractor refuses or fails to make delivery of the materials or supplies within the time specified in Article 1, or any extension thereof, the actual damage to the Government for the delay will be impossible to determine, and in lieu thereof the contractor shall pay to the Government, as fixed, agreed, and liquidated damages for each calendar day of delay in making delivery, the amount as set forth in the specifications or accompanying papers, and the contractor and his sureties shall be liable for the amount thereof.

Liquidated Damages shall be assessed against the contractor in the amount of $ * * * per vehicle for each calendar day of delay in making delivery.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would

equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Terms of payment: Discount will be allowed for prompt payment as follows: 10 calendar days, 1%.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to procurement authority QM 1801-P-37-3053-A-0525.003-01 (Net) the available balance of which is sufficient to cover cost of same. Purchased by negotiation under authority contained in Act of July 2, 1940 (Public No. 703, 76th Congress).

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of
Purchases and Contracts.

[F. R. Doc. 41-1307; Filed, February 24, 1941; 9:53 a. m.]

[Contract No. W-398-qm-8876 (O. I. #1578)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: FORD MOTOR COMPANY

Contract for: Cars, 5-Passenger Light Sedans.

Amount: $685,200.00 increased to $1,027,691.16 by Change Order "D".

Place: Holabird Quartermaster Depot, Baltimore, Md.

This Contract, entered into this 26th day of November 1940.

Scope of this contract. The contractor shall furnish and deliver * * * Cars, Motor, * * * 5-Passenger, Light Sedan Total $685,200.00 for the consideration stated and in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Delays—Liquidated damages. If the contractor refuses or fails to make delivery of the materials or supplies within the time specified in Article 1, or any extension thereof, the actual damage to the Government for the delay will be impossible to determine, and in lieu thereof the contractor shall pay to the Government, as fixed, agreed, and liquidated damages for each calendar day of delay in making delivery, the amount as set forth in the specifications or accompanying papers, and the contractor and his sureties shall be liable for the amount thereof. Liquidated Damages shall be assessed against the contractor in the amount of $* * per unit for each calender day of delay in making delivery.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Quantities listed hereon are subject to increase of not to exceed * * * Vehicles. This increase option to remain in effect until * * *.

Terms of payment: Discount will be allowed for prompt payment as follows: 30 calendar days $ * * * per unit.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to procurement authority QM 1802 P 37-3000 A 0525.004.01 the available balance of which is sufficient to cover cost of same.

[Contract No. W-398-qm-8876 (O. I. #1578)]

Change Order "D" (Increase)

FORD MOTOR COMPANY,
Alexandria, Virginia

JANUARY 25, 1941.

With reference to subject contract, issued you under date of November 26, 1940, for furnishing Cars, 5-Passenger, Light Sedan, you are hereby notified of the following change:

In accordance with increase option contained in subject contract, number of vehicles is hereby increased by * * * 5-Passenger, Light Sedans.

The amount of this contract is increased by $342,600.00 and changed to read $1,027,723.04.

This increase is properly chargeable to:

CWS 720 P 9 A 1005-01, $521.00 (net).

QM 1802 P 37-3000A 0525.004-01, $312,079.00 (net).

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of
Purchases and Contracts.

[F. R. Doc. 41-1306; Filed, February 24, 1941; 9:53 a. m.]

[Contract No. W 398-qm-8887 (O. I. No. 1595)]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: FORD MOTOR COMPANY

Contract for: Trucks * * *.

Amount: $1,462,500.00.

Place: Holabird Quartermaster Depot, Baltimore, Maryland.

This Contract, entered into this 20th day of November 1940.

Scope of this contract. The contractor shall furnish and deliver * * * Trucks, Total $1,462,500.00 for the consideration stated and in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Delays—Liquidated damages. If the contractor refuses or fails to make delivery of the materials or supplies within the time specified in Article 1, or any extension thereof, the actual damage to the Government for the delay will be impossible to determine, and in lieu thereof the contractor shall pay to the Government, as fixed, agreed, and liquidated damages for each calendar day of delay in making delivery, the amount as set forth in the specifications or accompanying papers, and the contractor and his sureties shall be liable for the amount thereof. Liquidated damages in the amount of * * * per vehicle for each calendar day of delay in making delivery, shall be assessed against the contractor.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Terms of payment. 30 calendar days * * * per truck.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to procurement authority QM 1801-P-37-3053-A-0525 003-01 (net) the available balance of which is sufficient to cover cost of same.

Purchased by negotiation under authority contained in Act of July 2, 1940 (Public, No. 703—76th Congress).

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of
Purchases and Contracts.

[F. R. Doc. 41-1310; Filed, February 24, 1941; 9:54 a. m.]

[Contract No. W-271-ORD-511]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: A. O. SMITH CORPORATION

Contract for: * * * Bodies for Bombs Demolition, * * *

Amount: $3,561,500.00.

Place: Chicago Ordnance District, 309 West Jackson Boulevard, Chicago, Illinois.

The * * * bodies for bombs, demolition, * * *, to be obtained under

this contract are authorized by, are for the purpose set forth in, and are chargeable to the procurement authority O. S. & S. A. ORD 6853 P11–0270 A 1005–01, the available balance of which is sufficient to cover the cost of this contract.

This contract, entered into this thirty-first day of December 1940.

Scope of this contract. The contractor shall furnish and deliver * * * bodies for bombs, Demolition, for the consideration stated of three million five hundred sixty-one thousand five hundred ($3,561,500.00) dollars, in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

Changes. Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

Payments. The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Payments will be made on partial deliveries accepted by the Government when requested by the contractor, whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

Liquidated damages. If the Contractor refuses or fails to make delivery of the materials or supplies within the time specified in Article 1, or any extension thereof, the actual damage to the Government for the delay will be impossible to determine, and in lieu thereof, the Contractor shall pay to the Government, as fixed, agreed, and liquidated damages * * * percent of the contract price of the undelivered portion for each day of delay in making delivery beyond the dates set forth in the contract for deliveries with a maximum liquidated damage charge of * * * percent, and the Contractor and his sureties shall be liable for the amount thereof.

Quantities. The Government reserves the right to increase the quantity on this contract by as much as * * *, and at the Unit price specified in Article 1, such option to be exercised within * * * days from date of this contract.

Termination when Contractor not in default. This contract is subject to termination by the Government at any time as its interests may require.

Performance bond. Contractors shall be required to furnish a performance bond in duplicate in the sum of ten per centum of the total amount of this contract with surety or other security acceptable to the Government to cover the successful completion of this contract.

Place of manufacture. The Contractor will perform the work under this contract in the factory or factories listed below:

A. O. Smith Corporation
Milwaukee, Wisconsin

This contract is authorized by the Act of July 2, 1940 (Public, No. 703—76th Congress).

FRANK W. BULLOCK,
Major, Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41–1311; Filed, February 24, 1941; 9:54 a. m.]

DEPARTMENT OF THE INTERIOR.

Bituminous Coal Division.

[Dockets Nos. A–378, A–379 and A–380]

PETITIONS OF THE BITUMINOUS COAL PRODUCERS BOARD FOR DISTRICT NO. 19 FOR MODIFICATION OF THE EFFECTIVE MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN SAID DISTRICT FOR SHIPMENT AND CONSUMPTION IN CERTAIN MARKET AREAS PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

ORDER OF DISMISSAL

Petitions pursuant to the Bituminous Coal Act of 1937 having been duly filed with this Division by the above-named party; and

The petitioner having at the hearing set for said petitions on January 27, 1941 in Salt Lake City, Utah, requested leave to withdraw said petitions and having since filed in the captioned dockets written requests for such leave,

It is hereby ordered, That said petitions be and the same are hereby dismissed and the said dockets closed, without prejudice.

Dated February 18, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1333; Filed, February 24, 1941; 11:48 a. m.]

[Docket No. A–355]

PETITION OF CONSUMERS MINING CORPORATION, A CODE MEMBER IN DISTRICT 8, FOR A RECLASSIFICATION OF ITS COALS FROM LOW VOLATILE TO HIGH VOLATILE

ORDER GRANTING FURTHER PARTIAL TEMPORARY RELIEF

Consumers Mining Corporation, a code member in District 8, filed an original petition with the Bitumious Coal Division pursuant to section 4 II (d) of the Bituminous Coal Act of 1937 and the Rules and Regulations Governing Practice and Procedure thereunder, requesting temporary and final orders revising the effective classifications and effective minimum prices established for certain low volatile coals produced at its Premier Mine (Mine Index No. 377) in District 8, as follows: by reducing the minimum f. o. b. mine price for its 2½" x 1" stove coal (presently classified "C" in Size Group 3) from $2.85 to $2.40 per ton; the price for its 1" x ¼" stoker coal (presently classified "A" in Size Group No. 4) from $2.50 to $2.25 per ton; and the price for its on-line railroad fuel screenings (larger than 1¼" x 0 but not exceeding 2½" x 0) from $2.20 to $1.90 per ton.

An order was entered in this proceeding on January 10, 1941, granting partial temporary relief to the original petitioner, Consumers Mining Corporation, pending final disposition of the original petition, by reducing the classification of its Size Group 3 coals from "C" to "D" and the corresponding minimum price from $2.85 to $2.70, and by reducing its railroad fuel price from $2.20 to $1.95.

Consumers Mining Corporation on January 15, 1941, filed with the Bituminous Coal Division its duly verified motion for reconsideration of such temporary order, and asking that the full relief requested in its original petition be granted pending final disposition of the original petition.

It now appears from said motion that the original petitioner is still unable to sell railroad fuel (larger than 1¼" x 0 but not exceeding 2½" x 0) despite the relief granted in the temporary order by reduction of the price to $1.95 per ton, for the reason that its coal is high volatile coal and the Norfolk and Western Railroad will not pay more than $1.90, the presently effective price for District 8 high volatile, railroad fuel, for its railroad fuel requirements.

It further appears therefrom that the price of $1.95 for railroad fuel established in the temporary order has not aided the original petitioner, since it has been able to make no shipments since the date of the temporary order, and that the motion should be sustained. It further appears from the record that Raven Red Ash Coal Company, for its No. 2 mine, is entitled to such temporary relief as may be granted to the original petitioner, Consumers Mining Company.

It is therefore ordered, That, a reasonable showing of necessity therefor having been made, pending final disposition of the original petition in the above entitled matter, temporary relief be, and it hereby is, granted as follows: Commencing forthwith, and pending final determination of the original petition in this proceeding, the effective minimum prices for the Premier Mine (Mine Index No. 377) of Consumers Mining Company and the No. 2 mine (Mine Index No. 391) of Raven Red Ash Coal Company, in District 8, low volatile, are hereby modified as follows: A minimum price of $1.90 per ton f. o. b. mines shall apply on screenings larger than 1¼" x 0, but not exceeding 2½" x 0, for sale on line to the Norfolk and Western Railway Company for use as railway fuel.

Notice is hereby given that, all applications to stay, terminate, or modify the temporary relief granted herein may be filed pursuant to the Rules and Regulations Governing Practice and Procedure before the Bituminous Coal Division in proceedings instituted pursuant to section 4 II (d) of the Bituminous Coal Act of 1937.

Dated: February 20, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1334; Filed, February 24, 1941; 11:48 a. m.]

[Docket No. A-221]

PETITION OF SUNLIGHT COAL COMPANY, A CODE MEMBER IN DISTRICT NO. 11, FOR THE ESTABLISHMENT OF ADDITIONAL SIZE CLASSIFICATIONS AND MINIMUM PRICES FOR RAILROAD LOCOMOTIVE FUEL SOLD BY IT AND OTHER ON-LINE MINES WITHIN SAID DISTRICT TO THE SOUTHERN RAILWAY

NOTICE OF AND ORDER FOR HEARING

A petition, pursuant to the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party;

It is ordered, That a hearing on such matter be held on March 10, 1941, at 10 o'clock in the forenoon of that day, at a hearing room of the Bituminous Coal Division in the Post Office Building, Evansville, Indiana.

It is further ordered, That Edward J. Hayes or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division for proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before March 5, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein, may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the request of Sunlight Coal Company, a code member in District No. 11, for the establishment of a size classification of 5" x 0 resultant mine run with a minimum price therefor of $1.60 per ton and a size classification of 2" x 0 screenings with a minimum price therefor of $1.40 per ton in the coals of its Mine Index No. 87 and of other mines in said district on-line to the Southern Railway and sold to that railway for locomotive fuel.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1331; Filed, February 24, 1941; 11:48 a. m.]

[Docket No. 1513-FD]

IN THE MATTER OF W. V. WALKER COAL COMPANY, DEFENDANT

ORDER CANCELING HEARING

The above-entitled proceedings having been concluded by the entry of a cease and desist order against the defendant pursuant to stipulation;

It is ordered, That the hearing previously scheduled for February 27, 1941, at Birmingham, Alabama, is hereby cancelled.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1332; Filed, February 24, 1941; 11:48 a. m.]

[Docket No. 1535-FD]

IN THE MATTER OF ELLIS BLACKBURN, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated January 27, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on January 30, 1941, by Troy T. Deskins a code member, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on April 2, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at Hotel Norton, Norton, Virginia.

It is further ordered, That Charles O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling to various customers during the period since October 1, 1940, large quantities of coal produced at his Blackburn Mine, Mine Index 2383, District No. 8 as follows: (1) 2" and over lump coal at $2.15 per ton f. o. b. the mine, the applicable effective minimum price f. o. b. the mine established for such coal being $2.55 per ton; and (2) 2" and under slack at $1.15

per ton f. o. b. the mine, the applicable effective minimum price f. o. b. the mine established for such coal being $1.80 per ton.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1330; Filed, February 24, 1941; 11:47 a. m.]

[Docket No. 1544-FD]

IN THE MATTER OF COLE FUEL COMPANY, INC., DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 6, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 6, 1941, by Bituminous Coal Producers Board for District No. 8, a District Board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on April 2, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at Hotel Norton, Norton, Virginia.

It is further ordered, That Charles O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling to various persons (1) during the period on or about October 22, 1940 to December 1, 1940, both dates inclusive, approximately 1552 tons of coal produced at its Cole Fuel Company mine in Laurel County, Kentucky, at various sales prices f. o. b. the mine for shipment via truck, all of such sales prices being less than the applicable effective minimum prices established for such coal for shipment via truck f. o. b. the mine; (2) approximately 600 tons of various grades and sizes of coal produced at its Cole Fuel Company mine during the period on or about December 2, 1940 to December 8, 1940, both dates inclusive, at sales prices f. o. b. the mine for shipment via truck less than the applicable effective minimum price established for such sizes and grades of coal f. o. b. the mine.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1327; Filed, February 24, 1941; 11:47 a. m.]

[Docket No. 1548-FD]

IN THE MATTER OF ARCHIE COOK, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 6, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 6, 1941, by Bituminous Coal Producers Board for District No. 8, a district board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on April 1, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at the Hotel Norton, Norton, Virginia.

It is further ordered, That Charles O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling during the period since October 1, 1940, to various persons the following quantities of coal produced at the defendant's mine located near Sand Lick Gap, Kentucky, approximately 300 tons of 1¼" lump coal, approximately 300 tons of 1¼" x

¼" nut coal, and approximately 300 tons of 1¼" x 0 slack coal for delivery by truck in or near Whitesburg, Kentucky, for the following delivered prices: 1¼" lump coal, $2.25 per ton, 1¼" x ¼" nut coal, $2.25 per ton, and 1¼" x 0 slack, $1.00 per ton, the applicable effective minimum price established for said coal f. o. b. the mine being $2.55, $2.05, and $1.60 per ton, respectively for each coal.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1326; Filed, February 24, 1941; 11:46 a. m.]

[Docket No. 1555-FD]

IN THE MATTER OF ISAAC MAGGARD, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 5, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 6, 1941, by Bituminous Coal Producers Board for District No. 8, a district board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on April 1, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at the Hotel Norton, Norton, Virginia.

It is further ordered, That Charles O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling during the period since October 1, 1940 to various persons approximately 300 tons of 1½" lump coal produced by the defendant at his mine located at Whitesburg, Letcher County, Kentucky, at a price of not more than $1.25 per ton f. o. b. the mine, the applicable effective minimum price established for said coal f. o. b. the mine being $2.55 per ton.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1324; Filed, February 24, 1941; 11:46 a. m.]

[Docket No. 1566-FD]

IN THE MATTER OF G. S. TATE, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 5, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 6, 1941, by Bituminous Coal Producers Board for District No. 8, a district board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on April 1,1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at the Hotel Norton, Norton, Virginia.

It is further ordered, That Charles O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling during the period since September 30, 1940, to the Wise County Board of Education, Wise, Virginia, approximately 1205 tons of mine run coal produced at his Steel Fork Mine, Mine Index No. 2366, District No. 8, at a price of $2.50 per ton delivered via truck to the public schools in the Gladeville and Richmond school districts of Wise County, Virginia. The applicable effective minimum price established for such coal is $2.10 per ton and the cost to the defendant of trans-

porting it via truck to the above-named school districts of Wise County is $0.875 and $0.90 per ton, respectively.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1328; Filed, February 24, 1941; 11:47 a. m.]

[Docket No. 1573-FD]

IN THE MATTER OF ROY SANDERS, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 17, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 17, 1941, by Bituminous Coal Producers Board for District No. 8, a district board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on March 31, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at Hotel Norton, Norton, Virginia.

It is further ordered, That Chas. O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bituminous Coal Code or rules and regulations thereunder as follows: By selling (1) on or about December 3, 1940 to T. A. Hendrickson of Bell County, Kentucky, a quantity of coal, Size Groups 1, 2, 5, 7, and 8 produced at his Sanders Magnolia Coal Company mine, Mine Index No. 1549, District No. 8, at the following prices f. o. b. the mine: Size Groups 1 and 2, $2.50 per ton; Size Group 5, $2.00 per ton; Size Groups 7 and 8, $1.00 per ton, the applicable effective minimum prices established for such sizes of coal f. o. b. the mine being for Size Group 1, $2.95 per ton; Size Group 2, $2.75 per ton; Size Group 5, $2.15 per ton; Size Group 7, $1.65 per ton, and Size Group 8, $1.60 per ton; and (2) during the period on or about December 10, 1940 to January 7, 1941, both dates inclusive, to D. M. Whitaker, Morristown, Tennessee, approximately 105 tons of coal, Size Groups 7 and 8, produced at his Sanders Magnolia Coal Company mine, Mine Index No. 1549, District No. 8, at an f. o. b. mine price of approximately 60¢ per ton, the applicable effective minimum price established f. o. b. the mine for Size Group 7 coal being $1.65 per ton and $1.60 per ton for Size Group 8 coal.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-1325; Filed, February 24, 1941; 11:46 a. m.]

[Docket No. 1567-FD]

IN THE MATTER OF FRED GUDGER, DEFENDANT

NOTICE OF AND ORDER FOR HEARING

A complaint dated February 15, 1941, pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, having been duly filed on February 17, 1941, by Bituminous Coal Producers' Board for District No. 8, a District Board, complainant, with the Bituminous Coal Division alleging willful violation by the defendant of the Bituminous Coal Code or rules and regulations thereunder;

It is ordered, That a hearing in respect to the subject matter of such complaint be held on March 31, 1941, at 10 a. m., at a hearing room of the Bituminous Coal Division at Hotel Norton, Norton, Virginia.

It is further ordered, That Chas. O. Fowler or any other officer or officers of the Bituminous Coal Division designated by the Director thereof for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to such places as he may direct by announcement at said hearing or any adjourned hearing or by subsequent notice, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said defendant and to all other parties herein and to all persons and entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Bituminous Coal Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Bitumious Coal Act of 1937, may file a petition for intervention not later than five (5) days before the date herein set for hearing on the complaint.

Notice is hereby given, that answer to the complaint must be filed with the Bituminous Coal Division at its Washington office or with any one of the statistical bureaus of the Division, within twenty (20) days after date of service thereof on the defendant; and that any defendant failing to file an answer within such period, unless the Director or the presiding officer shall otherwise order, shall be deemed to have admitted the allegations of the complaint herein and to have consented to the entry of an appropriate order on the basis of the facts alleged.

All persons are hereby notified, that the hearing in the above-entitled matter and orders entered therein may concern, in addition to the matters specifically alleged in the complaint herein, other matters incidental and related thereto, whether raised by amendment of the complaint, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

The matter concerned herewith is in regard to the complaint filed by said complainant, alleging willful violation by the above-named defendant of the Bi-

tuminous Coal Code or rules and regulations thereunder as follows:

By selling during the period since October 1, 1940, to Sewell Farmer approximately 300 tons of 2'' lump coal (Size Groups 1 and 2, District No. 8) produced by the defendant at his mine located near Cary, Bell County, Kentucky, at a price of $2.42 per ton f. o. b. the mine. The applicable effective minimum price f. o. b. the mine established for Size Group 1 is $2.95 per ton and for Size Group 2, $2.75 per ton.

Dated: February 21, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41–1329; Filed, February 24, 1941; 11:47 a. m.]

DEPARTMENT OF AGRICULTURE.

Agricultural Adjustment Administration.

OFFER OF THE SECRETARY OF AGRICULTURE TO MAKE PAYMENTS TO PRODUCERS ON THE NORMAL PRODUCTION IN 1941 OF FIBER FLAX STRAW PRODUCED FOR DOMESTIC CONSUMPTION

Pursuant to the authority vested in the Secretary of Agriculture by clause (3) of section 32, Public, No. 320, 74th Congress, approved August 24, 1935 (49 Stat. 774), as amended by section 2 of Public, No. 461, 74th Congress, approved February 29, 1936 (49 Stat. 1151), and further amended by section 203 of the Agricultural Adjustment Act, 1938, Public, No. 430, 75th Congress, approved February 16, 1938 (52 Stat. 31), and the item "Disposal of Surplus Commodities" in the Department of Agriculture Appropriation Act, 1940, I, Grover B. Hill, Acting Secretary of Agriculture of the United States (hereinafter referred to as the "Secretary"), in order to "reestablish farmers' purchasing power by making payments in connection with the normal production of any agricultural commodity for domestic consumption", do hereby offer to make payments to producers on the normal production in 1941 for domestic consumption of fiber flax straw as set forth below.

Payment will be made at the rate of $5.50 per ton, including the seed, with respect to field-cured fiber flax straw suitable for manufacture into spinning fiber from fiber flax seed planted in 1941 and sold and delivered on or before October 15, 1941, to operators of retting and scutching plants which have been approved by the Secretary as being engaged in or properly equipped for and capable of engaging in the manufacture of spinning fiber; provided that no payment shall be made for green tow and that:

(1) The aggregate maximum amount of fiber flax payments which may be made pursuant to this offer shall not exceed $49,995.00; and

(2) In the event that the total tonnage of fiber flax straw submitted and approved pursuant to this offer and computed at the rate of $5.50 per ton exceeds the aggregate maximum amount which may be made pursuant to this offer, the sum of $49,995.00 will be divided among producers in that proportion which the tonnage of fiber flax straw submitted by each producer, and approved by the Secretary as a basis for payment hereunder, bears to the total tonnage as submitted by all producers.

The payment provided for herein shall be subject to further conditions as follows:

(1) As used with respect to this offer, "producer" shall mean a landlord, owner-operator, cash-tenant, fixed commodity-rent tenant, share-tenant, or tenant on combined share and cash or fixed commodity-rent basis, individually or collectively, having an interest in the fiber flax straw produced in 1941 on the farm with respect to which payment is made.

(2) The producer shall file with the Secretary or his duly authorized representative, on or before June 25, 1941, notice of partial compliance and an application for payment on Form Flax 201. Such notice and application shall certify the number of acres planted to fiber flax used in 1941; that a fiber flax variety of seed was used; and shall further certify to the proportionate share of the producer of the fiber flax crop upon the farm. A certified notice and application will be filed for each farm.

(3) Payment will be divided in proportion to the respective interests of producer in the fiber flax crop, to be indicated on the notice and application referred to above.

(4) The producer shall file with the Secretary or his duly authorized representative, on or before November 1, 1941, on Form Flax 202, such proof as the Secretary may require with respect to the sale and delivery on or before October 15, 1941, to operators of approved retting and scutching plants, of field-cured fiber flax straw produced in 1941 and suitable for manufacture into spinning fiber. Payments will be made as soon as practicable after November 1, 1941.

(5) Payment to be made pursuant to this offer contemplates full performance of all its terms and conditions. In the event that a producer, party to the notice and application referred to, ceases to have an interest in the fiber flax straw produced in 1941 on the farm described therein, prior to the sale of such straw as provided by this offer, the payment shall be made to the producer having title to such straw at the time of its sale pursuant hereto, upon the submission of such proof as the Secretary may require.

This offer will terminate June 25, 1941, as to all producers who failed to file with the Secretary or his duly authorized representative, on or before such date, a notice of partial compliance and application for payment on Form Flax 201, as provided herein.

The Secretary may require such other proof and prescribe such other rules as he may deem necessary to carry out the purposes of the program herein outlined and to effectuate the purpose of clause (3) of section 32 of said Act.

Done at Washington, D. C., this 24th day of February 1941. Witness my hand and the seal of the Department of Agriculture.

[SEAL] GROVER B. HILL,
Acting Secretary of Agriculture.

[F. R. Doc. 41–1322; Filed, February 24, 1941; 11:39 a. m.]

Farm Security Administration.

DESIGNATION OF LOCALITIES IN COUNTY OF CRAWFORD, STATE OF ARKANSAS, IN WHICH LOANS MAY BE MADE.

In accordance with the rules and regulations promulgated by the Secretary of Agriculture on July 23, 1940, loans made in Crawford County, Arkansas, under Title I of the Bankhead-Jones Farm Tenant Act, may be made within the localities herein described and designated. The value of the average farm unit of thirty acres and more in each of these localities has been determined in accordance with provisions of those rules and regulations. There follow a description of the localities and the determination of value for each of these localities:

	Value
Locality I: Townships of Alma, Dora, Dyer, Maxey, Richland, Van Buren, and Vine Prairie	$2,955
Locality II: Townships of Barker, Cedar Creek, Cedarville, Chester, Cove City, Jasper, Lafayette, Lancaster, Lees Creek, Mountain, Oliver Springs, Porter Rudy, Sand Point, Shepherd, Union, Upper, Whitley, and Winfrey	1,105

Approved: February 17, 1941.

[SEAL] C. B. BALDWIN,
Administrator.

[F. R. Doc. 41–1323; Filed, February 24, 1941; 11:39 a. m.]

DEPARTMENT OF COMMERCE.

Civil Aeronautics Authority.

[Docket No. 273]

TRANSCONTINENTAL & WESTERN AIR, INC.

NOTICE OF HEARING [1]

In the matter of application for an amendment to its certificate of public convenience and necessity under section 401 of the Civil Aeronautics Act of 1938.

The above-entitled proceeding, being the application of Transcontinental & Western Air, Inc., for an amendment to its existing certificate of public convenience and necessity for Route No. 38, to include Boulder City, Nevada, as an intermediate point, is hereby assigned for public hearing on February 25, 1941, 10 o'clock a. m. (Eastern Standard

[1] Issued by the Civil Aeronautics Board.

Time) in Room 259, Mayflower Hotel, Connecticut Avenue and DeSales St. NW., Washington, D. C., before Examiner John W. Belt.

Dated Washington, D. C., February 21, 1941.

[SEAL] DONALD W. NYROP,
Acting Secretary.

[F. R. Doc. 41-1315; Filed, February 24, 1941; 10:40 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

[Administrative Order No. 85]

APPOINTMENT OF INDUSTRY COMMITTEE NO. 22 FOR THE RUBBER PRODUCTS MANUFACTURING INDUSTRY

1. By virtue of and pursuant to the authority vested in me by the Fair Labor Standards Act of 1938, I, Philip B. Fleming, Administrator of the Wage and Hour Division, U. S. Department of Labor, do hereby appoint and convene for the rubber products manufacturing industry (as such industry is defined in paragraph 2) an industry committee composed of the following representatives:

For the public. Arthur T. Martin, Chairman, Columbus, Ohio; William Haber, Ann Arbor, Michigan; Edmund D. McGarry, Buffalo, New York; Alexander Hamilton Frey, Philadelphia, Pennsylvania; Frank Lewand, Washington, D. C.

For the employees. Frank P. Fenton, Washington, D. C.; Sherman H. Dalrymple, Akron, Ohio; George Cummins, Mishawaka, Indiana; Margaret C. Hemrick, Ravenna, Ohio; George R. Bass, Akron, Ohio.

For the employers. Thomas G. Graham, Akron, Ohio; Leo Larkin, La Crosse, Wisconsin; Paul H. Henkel, Erie, Pennsylvania; F. Thatcher Lane, New Haven, Connecticut; M. I. Woythaler, Framingham, Massachusetts.

Such representatives having been appointed with due regard to the geographical regions in which such industry is carried on.

2. For the purpose of this order the term "rubber products manufacturing industry" means:

The manufacture of all products which have as an ingredient any form of natural rubber (including latex), reclaimed rubber, scrap rubber, compounded rubber, rubber derivatives, balata, gutta-percha, or synthetic rubber, including parts for use in other products, and including footwear made by the vulcanizing of the entire article or the vulcanizing (as distinct from cementing) of the sole to the upper; the manufacture of reclaimed rubber; and the preparation of scrap rubber for use in the manufacture of reclaimed rubber or rubber products.

Provided, however, That the manufacture of the following shall not be included:

(a) Any product the manufacture of which is covered by an order of the Administrator defining an industry, and approving the recommendations of an industry committee or appointing an industry committee for such industry, issued prior to the signing of this order.

(b) Abrasive wheels, brake linings, and insulated wire and cable.

The term "synthetic rubber" as used herein means a synthetic substance which has physical properties resembling those of natural rubber.

The term "preparation" as used herein means all operations involved in making scrap rubber suitable for use in the manufacture of reclaimed rubber or rubber products, and includes, but not by way of limitation, the separating, sorting and assembling of scrap rubber. It does not include, however, the mere collection and handling of scrap rubber by waste material dealers who perform no operations changing the shape or form of such scrap rubber.

3. The definition of the rubber products manufacturing industry covers all occupations in the industry which are necessary to the production of products covered by the definition, including clerical, maintenance, shipping, and selling occupations: *Provided, however,* That this definition does not cover clerical, maintenance, shipping, and selling occupations when carried on in a wholesaling or selling department physically segregated from other departments of a manufacturing establishment, or when carried on in an establishment the greater part of whose sales are of products not covered in the definition: *And provided, further,* That where an employee covered by this definition is employed during the same workweek at two or more different minimum rates of pay he shall be paid the highest of such rates for such workweek, unless records concerning his employment are kept by his employer in accordance with applicable regulations of the Wage and Hour Division.

4. The industry committee herein created shall meet at the Washington Hotel, Washington, D. C., on March 25, 1941 at 10 A. M. The Committee, in accordance with the provisions of the Fair Labor Standards Act of 1938 and rules and regulations promulgated thereunder, shall proceed to investigate conditions in the industry and recommend to the Administrator minimum wage rates for all employees thereof who within the meaning of said Act are "engaged in commerce or in the production of goods for commerce," excepting employees exempted by virtue of the provisions of section 13 (a) and employees coming under the provisions of section 14.

Signed at Washington, D. C., this 17th day of February 1941.

PHILIP B. FLEMING,
Administrator.

[F. R. Doc. 41-1341; Filed, February 24, 1941; 11:50 a. m.]

NOTICE OF DESIGNATION OF BOARD OF EXAMINERS FOR HEARING ON PROPOSED JOINT REGULATIONS OF THE SECRETARY OF LABOR AND THE ADMINISTRATOR OF THE WAGE AND HOUR DIVISION OF THE DEPARTMENT OF LABOR CONCERNING EMPLOYMENT OF LEARNERS AT SUBMINIMUM RATES IN THE APPAREL INDUSTRY AND THE COTTON GARMENTS AND ALLIED PRODUCTS, UNIFORM AND CLOTHING, WORK GLOVES AND MEN'S RAINCOAT INDUSTRIES

Whereas the Secretary of Labor and the Administrator of the Wage and Hour Division, on February 12, 1941, issued a notice of hearing on proposed joint regulations concerning the employment of learners at subminimum rates in the apparel industry under the Fair Labor Standards Act of 1938 and the cotton garments and allied products, uniform and clothing, work gloves, and men's raincoat industries under the Public Contracts Act which provided for the designation of a presiding officer by the Secretary of Labor and the Administrator of the Wage and Hour Division to conduct said hearing, and

Whereas it has been deemed advisable to designate in lieu thereof a Board of Examiners for the purpose of performing the functions delegated to the presiding officer in the said notice of February 12, 1941.

Now, therefore, it is ordered, That the following persons are appointed to the said Board of Examiners which is hereby vested with the afore-mentioned functions of the presiding officer:

Rufus G. Poole, Esquire, Assistant Solicitor of the Department of Labor, Chairman of the Board.

William R. McComb, Assistant Administrator, Public Contracts Division.

Dr. Gustav Peck, Assistant Director, Hearings Branch, Wage and Hour Division.

Signed at Washington, D. C., this 21st day of February 1941.

FRANCES PERKINS,
Secretary of Labor.
PHILIP B. FLEMING,
Administrator,
Wage and Hour Division.

[F. R. Doc. 41-1342; Filed, February 24, 1941; 11:51 a. m.]

NOTICE OF ISSUANCE OF SPECIAL CERTIFICATES FOR THE EMPLOYMENT OF LEARNERS UNDER THE FAIR LABOR STANDARDS ACT OF 1938

Notice is hereby given that Special Certificates authorizing the employment of learners at hourly wages lower than the minimum wage rate applicable under section 6 of the Act are issued under section 14 thereof, Part 522 of the Regulations issued thereunder (August 16, 1940, 5 F.R. 2862) and the Determination and Order or Regulation listed below and published in the FEDERAL REGISTER as here stated.

Apparel Learner Regulations, September 7, 1940 (5 F.R. 3591).

Artificial Flowers and Feathers Learner Regulations, October 24, 1940 (5 F.R. 4203).

Glove Findings and Determination of February 20, 1940, as amended by Administrative Order of September 20, 1940 (5 F.R. 3748).

Hosiery Learner Regulations, September 4, 1940 (5 F.R. 3530).

Independent Telephone Learner Regulations, September 27, 1940 (5 F.R. 3829).

Knitted Wear Learner Regulations, October 10, 1940 (5 F.R. 3982).

Millinery Learner Regulations, Custom Made and Popular Priced, August 29, 1940 (5 F.R. 3392, 3393).

Textile Determination and Order, November 8, 1939 (4 F.R. 4531) as amended, April 27, 1940 (5 F.R. 1586).

Woolen Learner Regulations, October 30, 1940 (5 F.R. 4302).

The employment of learners under these Certificates is limited to the terms and conditions as to the occupations, learning periods, minimum wage rates, et cetera, specified in the Determination and Order or Regulation for the industry designated above and indicated opposite the employer's name. These Certificates become effective February 24, 1941. The Certificates may be canceled in the manner provided in the Regulations and as indicated in the Certificates. Any person aggrieved by the issuance of any of these Certificates may seek a review or reconsideration thereof.

NAME AND ADDRESS OF FIRM, INDUSTRY, PRODUCT, NUMBER OF LEARNERS, AND EXPIRATION DATE

Adella Dress Company, 1238 Callowhill Street, Philadelphia, Pennsylvania; Apparel; Ladies' Dresses; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Archer Rubber Company, Central Street, Milford, Massachusetts; Apparel; Rubberized fabrics, Raincoats; 10 percent (75% of the applicable hourly minimum wage); May 19, 1941.

Beacon Company, 519 Broadway, Kingston, New York; Apparel; Cotton dresses; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Michael Berkowitz Company, Inc., Barton Mill Road, Uniontown, Pennsylvania; Apparel; Shirts & Pajamas; 5 percent (75% of the applicable hourly minimum wage); February 24, 1942.

Berry Dry Goods Company, 105 East Markham Street, Little Rock, Arkansas; Apparel; Work Clothing; 10 percent (75% of the applicable hourly minimum wage); May 19, 1941.

Blue Bell-Globe Manufacturing Company, 626 South Elm Street, Greensboro, North Carolina; Apparel; Overalls & Denim Jackets; 5 percent (75% of the applicable hourly minimum wage); February 24, 1942.

Bridgeton Shirtwaist Company, Rear 40, Laurel Street, Bridgeton, New Jersey; Apparel; Blouses; 40 learners (75% of the applicable hourly minimum wage); June 23, 1941.

Broom and Newman, 2nd Avenue and Langford Street, Asbury Park, New Jersay; Apparel; Shirts & Pajamas; 40 learners (75% of the applicable hourly minimum wage); June 23, 1941.

Cavalier Garment Corp., Pennsylvania and Market Street, Evansville, Indiana; Apparel; Trousers, Jackets; 10 percent (75% of the applicable hourly minimum wage); May 19, 1941.

Creery Shirt Shop, Inc., 713 East Main Street, Richmond, Virginia; Apparel; Shirts; 2 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Derby Underwear Company, Bowling Green, Kentucky; Apparel; Woven Underwear; 200 learners (75% of the applicable hourly minimum wage); June 23, 1941.

Elgin Dress Company, 19 North Spring Street, Elgin, Illinois; Apparel; Dresses; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Ely & Walker Overall and Clothing Plant, Ilmo, Missouri; Apparel; Overalls, Cotton & Wool Pants; 10 percent (75% of the applicable hourly minimum wage); May 19, 1941.

H. Lang Company, 113 North Second Street, River Falls, Wisconsin; Apparel; Overalls; 12 learners (75% of the applicable hourly minimum wage); June 27, 1941.

McKeever's, 613 West 11th Street, Los Angeles, California; Apparel; Sportswear & Other Odd Outerwear; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

J. & S. Milberg, Inc., 251 Grant Avenue, East Newark, New Jersey; Apparel; Ladies' Underwear, Slips, Gowns, Panties, Pajamas; 5 percent (75% of the applicable hourly minimum wage); February 24, 1942.

Nick Moretti, 205 W. Fayette Street, Baltimore, Maryland; Custom Coats; 1 learner (75% of the applicable hourly minimum wage); May 24, 1941.

Movie Star Manufacturing Company, 37 South Seventh Street, Allentown, Pennsylvania; Apparel; Slips; 5 percent (75% of the applicable hourly minimum wage); February 24, 1942.

Oregon City Manufacturing Company, Third & Main Streets, Oregon City, Oregon; Apparel; Men's Clothing; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

S. Orfalea and Company, 754 South Los Angeles Street, Los Angeles, California; Apparel; Blouses; 10 learners (75% of the applicable hourly minimum wage); June 23, 1941.

Pillow Manufacturing Company, Pillow, Pennsylvania; Apparel; Boys' Dress Shirts; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

The Resisto Tru-Fast Tie Company, 42 South Paca Street, Baltimore, Maryland; Apparel; Men's Neckwear; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Ribbon Products Corporation, 454 North Parkside Avenue, Chicago, Illinois; Apparel; Ladies' Neckwear, Blouses & Flower Novelties; 3 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Southern States Manufacturing Company, Douglasville, Georgia; Apparel; Cotton Work Pants; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Southland Manufacturing Company, 741 Florida Avenue, Jacksonville, Florida; Apparel; Cotton Pants, Shirts, & Overalls; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Mr. P. A. Specht, Blooming Glen, Pennsylvania; Apparel; Pants; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Stuart, Keith Corporation, Brown and Pine Streets, Petersburg, Virginia; Apparel; Pants; 10 percent (75% of the applicable hourly minimum wage); May 19, 1941.

Summit Garment Company, 208 Post Square, Cincinnati, Ohio; Apparel; Dresses, Blouses, & Uniforms; 3 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Sunnyvale, Inc., 614 Wyoming Avenue, Scranton, Pennsylvania; Apparel; Dresses; 5 percent (75% of the applicable hourly minimum wage); February 24, 1942.

Louis Zupnik, New Freedom, Pennsylvania; Apparel; Children's Dresses; 5 learners (75% of the applicable hourly minimum wage); February 24, 1942.

Fisher Hosiery Company, Inc., Reading, Pennsylvania; Hosiery; Seamless; 5 learners; February 24, 1942.

I. Bennett, Inc., 594 Broadway, New York, New York; Knitted Wear; Children's Knitted Underwear; 5 learners; February 24, 1942.

Emple Knitting Mills, 27 Columbia Street, Bangor, Maine, Knitted Wear; Knitted Outerwear; 13 learners; August 25, 1941.

Fort Schuyler Knitting Co., 1607 Kemble Street, Utica, New York; Knitted Wear; Knitted Underwear & Outerwear; 15 learners; June 23, 1941.

Hamburg Knitting Mill & Bleach Works, Inc., Pine Street, Hamburg, Pennsylvania; Knitted Wear; Knitted Underwear; 2 learners; February 24, 1942.

Lebanon Knitting Mills, Inc., Twelfth and Walnut Streets, Lebanon, Pennsylvania; Knitted Wear; Ladies' Underwear; 10 learners; February 24, 1942.

Leininger Knitting Mills, North Liberty Street, Orwigsburg, Pennsylvania; Knitted Wear; Underwear & Outerwear; 5 learners; February 24, 1942.

Chic Maid Hat Mfg. Co., Inc., 267 Guilford Street, Buffalo, New York; Millinery; Popular-Priced; 2 learners; August 24, 1941.

Green River Mills, Inc., Tuxedo, North Carolina; Textile; Cotton; 3 percent; February 24, 1942.

Macon Textiles, Inc., Lake Street, Macon, Georgia; Textile; Cotton Cloth; 8 learners; May 26, 1941.

Pennsylvania Ribbon Mfrs., Seventh & Somerset Streets, Philadelphia, Pennsylvania; Textile; Ribbon; 7 learners; May 26, 1941.

Waverly Mills (Scotland Plant), East Laurinburg, North Carolina; Textile; Cotton Yarns; 3 learners; February 24, 1942.

Waverly Mills (Waverly Plant), East Laurinburg, North Carolina; Textile; Cotton Yarns; 6 learners; February 24, 1942.

Waverly Mills (Prince Plant), East Laurinburg, North Carolina; Textile; 10 learners; February 24, 1942.

Signed at Washington, D. C., this 24th day of February 1941.

MERLE D. VINCENT,
Authorized Representative of the Administrator.

[F. R. Doc. 41-1339; Filed, February 24, 1941; 11:49 a. m.]

NOTICE OF ISSUANCE OF SPECIAL CERTIFICATES FOR THE EMPLOYMENT OF LEARNERS UNDER THE FAIR LABOR STANDARDS ACT OF 1938

Notice is hereby given that Special Certificates authorizing the employment of learners at hourly wages lower than the minimum rate applicable under section 6 of the Act are issued under section 14 thereof and § 522.5 (b) of the Regulations issued thereunder (August 16, 1940, 5 F.R. 2862) to the employers listed below effective February 24, 1941.

The employment of learners under these Certificates is limited to the terms and conditions as designated opposite the employer's name. These Certificates are issued upon the employers' representations that experienced workers for the learner occupations are not available for employment and that they are actually in need of learners at subminimum rates in order to prevent curtailment of opportunities for employment. The Certificates may be cancelled in the manner provided for in the Regulations and as indicated on the Certificate. Any person aggrieved by the issuance of these certificates may seek a review or reconsideration thereof.

NAME AND ADDRESS OF FIRM, PRODUCT, NUMBER OF LEARNERS, LEARNING PERIOD, LEARNER WAGE, LEARNER OCCUPATIONS, EXPIRATION DATE

J. P. Horn & Company, Shippen & Walnut Streets, Lancaster, Pennsylvania; Living Room Furniture; 1 learner; 8 weeks for any one learner; 25 cents per hour; Cushion Maker; May 5, 1941.

J. P. Horn & Company, Shippen & Walnut Streets, Lancaster, Pennsylvania; Living Room Furniture; 1 learner; 4 weeks for any one learner; 25 cents per hour; Sewer; April 7, 1941.

Signed at Washington, D. C., this 24th day of February 1941.

MERLE D. VINCENT,
Authorized Representative of the Administrator.

[F. R. Doc. 41-1338; Filed, February 24, 1941; 11:49 a. m.]

NOTICE OF HEARING ON MINIMUM WAGE RECOMMENDATIONS OF THE SPECIAL INDUSTRY COMMITTEE FOR PUERTO RICO IN INDUSTRIES OTHER THAN THE NEEDLEWORK, SUGAR, AND LEAF TOBACCO INDUSTRIES

Whereas the Administrator of the Wage and Hour Division of the United States Department of Labor, acting pursuant to section 5 (e) of the Fair Labor Standards Act of 1938, as amended, on August 1, 1940,[1] by Administrative Order No. 58, appointed a Special Industry Committee for Puerto Rico, composed of residents of such Island and residents of the United States outside of Puerto Rico, said administrative order directing the said Special Industry Committee to proceed to investigate conditions in the industries of Puerto Rico and recommend to the Administrator minimum wage rates for all employees in Puerto Rico who, within the meaning of said Act, are "engaged in commerce or in the production of goods for commerce" excepting employees exempted by virtue of the provisions of section 13 (a) and employees coming under the provisions of section 14; and

Whereas said Special Industry Committee first proceeded to investigate conditions on October 2, 1940, and to recommend to the Administrator minimum wages for employees in the Needlework Industries; and

Whereas the Special Industry Committee for Puerto Rico reconvened, pursuant to Administrative Order No. 58, dated August 1, 1940, and after investigating conditions on February 19, 1941, recommended minimum wage rates for employees in several industries in Puerto Rico other than the Needlework, Sugar and Leaf Tobacco Industries and duly adopted a report containing said recommendations and reasons therefor and has filed such report with the Administrator on February 24, 1941, pursuant to section 8 (d) of the Act and § 511.19 of the regulations issued under the Act; and

Whereas the Administrator is required by section 8 (d) of the Act, after due notice to interested persons and giving them an opportunity to be heard, to approve and carry into effect by order the recommendations of the Special Industry Committee for Puerto Rico if he finds that the recommendations are made in accordance with law, are supported by evidence adduced at the hearing, and taking into consideration the same factors as are required to be considered by the Industry Committee, will carry out the purposes of section 8 of the Act, and will not give any industry in Puerto Rico a competitive advantage over any industry in the United States outside of Puerto Rico; and, if he finds otherwise, to disapprove such recommendations;

Now, therefore, notice is hereby given that:

I. The Special Industry Committee for Puerto Rico by majority vote in each instance made the following separable recommendations for minimum wage rates to be paid to employees engaged in the following industries in Puerto Rico:

(1) Wages at a rate of not less than 16 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the vegetable, fruit and fruit juice canning industry who is engaged in commerce or in the production of goods for commerce.

(2) Wages at a rate of not less than 15 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the vegetable packing industry who is engaged in commerce or in the production of goods for commerce.

(3) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the manufactured cocoanut industry who is engaged in commerce or in the production of goods for commerce.

(4) Wages at a rate of not less than 27½ cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the ocean pearl button industry who is engaged in commerce or in the production of goods for commerce.

(5) Wages at a rate of not less than 12½ cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the raffia handbag industry who is engaged in hand sewing operations and who is engaged in commerce or in the production of goods for commerce.

[1] By Administrative Order No. 63, dated September 9, 1940, and by Administrative Order No. 82, dated February 1, 1941, members were appointed to the Committee to represent employers in place of members who had resigned.

(6) Wages at a rate of not less than 20 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the raffia handbag industry who is engaged in other operations, including but not by way of limitation, cutting, machine operating, stamping, sorting, pinning, washing, finishing, pressing, examining, and packing, and who is engaged in commerce or in the production of goods for commerce.

(7) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the hosiery industry who is engaged in commerce or in the production of goods for commerce.

(8) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the hair net industry who is engaged in commerce or in the production of goods for commerce.

(9) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the cigar industry who is engaged in commerce or in the production of goods for commerce.

(10) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the cigarette industry who is engaged in commerce or in the production of goods for commerce.

(11) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the straw hat industry who is engaged in commerce or in the production of goods for commerce.

(12) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the mattress, quilt and pillow industry who is engaged in commerce or in the production of goods for commerce.

(13) Wages at a rate of not less than 25 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938 by every employer to each of his employees in the bay oil, bay rum and aromatic alcohol industry who is engaged in commerce or in the production of goods for commerce.

II. The definitions of the several industries for which the Special Industry Committee for Puerto Rico has recommended minimum wage rates are as follows:

(1) The term "vegetable, fruit and fruit juice canning industry" shall mean the canning of vegetables, fruits and fruit juices but shall not include employees thereof exempted by the provisions of section 13 (a) and section 14 of the Fair Labor Standards Act.

(2) The term "vegetable packing industry" shall mean the handling, grading, packing and preparing in their raw or natural state of fresh vegetables but shall not include employees thereof exempted by the provisions of section 13 (a) and section 14 of the Fair Labor Standards Act.

(3) The term "manufactured cocoanut industry" shall mean the manufacture of dessicated or prepared cocoanut.

(4) The term "ocean pearl button industry" shall mean the manufacture of buttons from mother-of-pearl, ocean-pearl, or sea-pearl.

(5) The term "raffia handbag industry" shall mean the manufacture of women's handbags, pocketbooks, and purses from straw, embroidered or embellished with raffia.

(6) The term "hosiery industry" shall mean the manufacturing of full-fashioned hosiery, but not including dyeing, clocking and other phases of hosiery finishing.

(7) The term "hair net industry" shall mean the manufacture of hair nets from any material except human hair.

(8) The term "cigar industry" shall mean the manufacture of cigars, cheroots and little cigars.

(9) The term "cigarette industry" shall mean the manufacture of cigarettes.

(10) The term "straw hat industry" shall mean the manufacture of hats from straw, it being understood, however, that the term "straw" is used in the trade sense and is not confined to materials made from natural fibers.

(11) The term "mattress, quilt and pillow industry" shall mean the manufacture of mattresses, quilts and pillows from any material.

(12) The term "bay oil, bay rum, and aromatic alcohol industry" shall mean the manufacture of bay oil, bay rum, and aromatic alcohol.

III. The full text of the report and recommendation of the Special Industry Committee for Puerto Rico, together with any dissenting statements which may be filed by a member subsequent to the date of this notice are and will be available for inspection by any person between the hours of 9:00 a. m. and 4:30 p. m. at the following offices of the United States Department of Labor, Wage and Hour Division:

Boston, Massachusetts, 304 Walker Building, 120 Boylston Street.

Newark, New Jersey, 1005 Kinney Building, 790 Broad Street.

Pittsburgh, Pennsylvania, 216 Old P. O. Building.

Baltimore, Maryland, 606 Snow Building, Calvert & Lombard Streets.

Columbia, South Carolina, Federal Land Bank Building, Hampton & Marion Streets.

Jacksonville, Florida, 456 New P. O. Building.

New Orleans, Louisiana, Pere Marquette Building, 150 Baronne Street.

Cleveland, Ohio, 728 Standard Building, 1370 Ontario Street.

Detroit, Michigan, 346 New P. O. Building.

Minneapolis, Minnesota, 406 Pence Building, 730 Hennepin Avenue.

St. Louis, Missouri, 100 Old Custom House Bldg., 815 Olive Street.

New York, New York, Parcel Post Building, 341 9th Avenue.

Philadelphia, Pennsylvania, 1216 Widener Building, Chestnut & Juniper Streets.

Richmond, Virginia, 215 Richmond Trust Bldg., 627 E. Main Street.

Raleigh, North Carolina, 507 Raleigh Building, Hargett & Fayetteville Sts.

Atlanta, Georgia, 314 Witt Building, 249 Peachtree Street.

Birmingham, Alabama, 1007 Comer Building, 2nd Avenue & 21st Street.

Nashville, Tennessee, Medical Arts Building, 119 Seventh Avenue, N.

Cincinnati, Ohio, 1312 Cincinnati Traction Bldg., 5th & Walnut Streets.

Chicago, Illinois, 1200 Merchandise Mart, 222 W. North Bank Drive.

Kansas City, Missouri, 504 Title & Trust Bldg., 10th & Walnut Streets.

Denver, Colorado, 1726 Champa Street, 300 Chamber of Commerce Bldg.

Dallas, Texas, 824 Santa Fe Building, 1114 Commerce Street.

Los Angeles, California, 414 H. W. Hellman Building, 354 South Spring Street.

San Juan, Puerto Rico, P. O. Box 112.

San Francisco, California, Room 500, 785 Market Street.

Seattle, Washington, 305 P. O. Building, 3rd Avenue & Union Street.

Juneau, Alaska, B. D. Stewart Commissioner of Mines.

Washington, District of Columbia, Department of Labor, 4th Floor.

IV. A public hearing for the purpose of taking evidence on the question of whether the recommendations of the Special Industry Committee for Puerto Rico or any of them shall be approved or disapproved pursuant to section 8 of the Act will be held March 12, 1941, at 10:00 a. m. at Conference Rooms A and B, Departmental Auditorium, 14th Street and Constitution Avenue, N.W., Washington, D. C., before Henry T. Hunt, Esquire, Principal Hearings Examiner of the Wage and Hour Division, United States Department of Labor, as presiding officer. Pursuant to the rules of hearing hereinafter set forth, the presiding officer may continue the hearing from day to day, or adjourn the hearing to a later date or to a different place.

V. Any interested person, supporting or opposing the recommendations of the Special Industry Committee for Puerto Rico, or any of them, may appear at the aforesaid hearing to offer evidence, either on his own behalf or on behalf of any other person: *Provided*, That not later than March 5, 1941, any such person who intends to appear at the hearing shall file with the Administrator at Washington, D. C., a notice of his intention to appear which shall contain the following information:

1. The name and address of the person appearing.

2. If such person is apearing in a representative capacity, the name and address of the person or persons whom he is representing.

3. Which of the recommendations of the Special Industry Committee such person is interested in and whether such person proposes to appear for or against such recommendations.

4. The approximate length of time required for his presentation.

Such notice shall be deemed filed upon the receipt thereof by the Administrator, Wage and Hour Division, United States Department of Labor, Washington, D. C.

VI. Any person interested in supporting or opposing the recommendations of the Special Industry Committee for Puerto Rico may secure further information concerning the aforesaid hearing by inquiry directed to the Administrator, Wage and Hour Division, United States Department of Labor, Washington, D. C., or by consulting with attorneys representing the Administrator who will be available for that purpose at the offices of the Wage and Hour Division in Washington, D. C.

VII. Copies of the following documents relating to the several industries in Puerto Rico will be made available upon request for inspection by any interested person who intends to appear at the aforesaid hearing:

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Report on Puerto Rico: Fruit and Fruit Juice Canning Industry*, February 18, 1941.

Collateral exhibits. (a) United States Department of Commerce, Bureau of Foreign and Domestic Commerce, *Fruit Canners of the World*, 1939.

(b) United States Department of Labor, Bureau of Labor Statistics, *Labor in the Territory of Hawaii, 1939*, 1940.

(c) United States Department of Commerce, Bureau of Census, *Sixteenth Decennial Census of the United States, Hawaii—Manufactures*, August 26, 1940.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: The Ocean Pearl Button Industry*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Full-Fashioned Hosiery Industry*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Pureto Rico: Full-Fashioned Hosiery Industry*, Supplement, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Hairnet Industry*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Cigars*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Cigarettes*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Men's Straw Hat Industry*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Mattresses*, February 1941.

United States Department of Labor, Wage and Hour Division, Research and Statistics Branch, *Puerto Rico: Bay Oil, Bay Rum and/or Aromatic Alcohol Industry*, February 1941.

United States Department of Labor, Bureau of Labor Statistics, Cost of Living Division, *Preliminary Memorandum on Cost of Living in Puerto Rico.*

A transcript of the hearing on the several industries held before the Special Industry Committee for Puerto Rico may be obtained, upon payment of the regular charge therefor, from the official reporter, Electric Reporting Company, 1707 Eye Street, N.W., Washington, D. C., and may be examined by any interested person, at the office of the Wage and Hour Division in the Department of Labor Building, Washington, D. C., or in El Banco Popular Building, San Juan, Puerto Rico. The foregoing reports and transcript will be offered in evidence at the public hearing herein referred to.

VIII. The hearing will be conducted in accordance with the following rules, subject, however, to such subsequent modifications by the Administrator or the Principal Hearings Examiner as are deemed appropriate:

1. The hearing shall be stenographically reported and a transcript made which will be available to any person at prescribed rates upon requests addressed to the Administrator, Wage and Hour Division, United States Department of Labor, Washington, D. C.

2. In order to maintain orderly and expeditious procedure, each person filing a Notice to Appear shall be notified, if practicable, of the approximate day and the place at which he may offer evidence at the hearing. If such person does not appear at the time set in the notice he will not be permitted to offer evidence at any other time except by special permission of the presiding officer.

3. At the discretion of the presiding officer the hearing may be continued from day to day, or adjourned to a later date, or to a different place, by announcement thereof at the hearing by the presiding officer, or by other appropriate notice.

4. At any stage of the hearing, the presiding officer may call for further evidence upon any matter. After the presiding officer has closed the hearing before him, no further evidence shall be taken, except at the request of the Administrator, unless provision has been made at the hearing for the later receipt of such evidence. In the event that the Administrator shall cause the hearing to be reopened for the purpose of receiving further evidence, due and reasonable notice of the time and place fixed for such further taking of testimony shall be given to all persons who have filed a notice of intention to appear at the hearing.

5. All evidence must be presented under oath or affirmation.

6. Written documents or exhibits, except as otherwise permitted by the presiding officer, must be offered in evidence by a person who is prepared to testify as to the authenticity and trustworthiness thereof, and who shall, at the time of offering the documentary exhibit, make a brief statement as to the contents and manner of preparation thereof.

7. Written documents and exhibits shall be tendered in duplicate and the persons preparing the same shall be prepared to supply additional copies if such are ordered by the presiding officer. Where evidence is embraced in a document containing matter not intended to be put in evidence, such a document will not be received, but the person offering the same may present to the presiding officer the original document together with two copies of those portions of the document intended to be put in evidence. Upon presentation of such copies in proper form the copies will be received in evidence.

8. Subpoenas requiring the attendance of witnesses or the presentation of a document from any place in the United States at any designated place of hearing may be issued by the Administrator at his discretion, and any person appearing in the proceeding may apply in writing for the issuance by the Administrator of the subpoena. Such applications shall be timely and shall identify exactly the witness or document and state fully the nature of the evidence proposed to be secured.

9. Witnesses summoned by the Administrator shall be paid the same fees and mileage as are paid witnesses in the courts of the United States. Witness fees and mileage shall be paid by the party at whose instance witnesses appear, and the Administrator before issuing subpoena may require a deposit of an amount adequate to cover the fees and mileage involved.

10. The rules of evidence prevailing in courts of law or equity shall not be controlling.

11. The presiding officer may, at his discretion, permit any person appearing in the proceeding to cross-examine any witness offered by another person in so far as is practicable, and to object to the admission or exclusion of evidence by the presiding officer. Requests for permission to cross-examine a witness offered by another person and objections to the admission or exclusion of evidence shall be stated briefly with the reasons for such request or the ground of objection relied on. Such requests or objections shall become a part of the record, but the record shall not include argument thereon except as ordered by the presiding

officer. Objections to the approval of the Committee's recommendations and to the promulgation of a wage order based upon such approval must be made at the hearing before the presiding officer.

12. Before the close of the hearing the presiding officer shall receive written requests from persons appearing in the proceeding for permission to file briefs and to make oral arguments before the Administrator upon the matter in issue. These requests will be forwarded to the Administrator by the presiding officer with the record of the proceedings. If the Administrator, in his discretion, allows the request, he shall give such notice thereof as he deems suitable to all persons appearing in the proceeding, and shall designate the final date for the filing of such briefs and the time and place at which the oral arguments shall be heard. If the requests for oral argument are allowed, all persons appearing at the hearing will be given opportunity to present such argument.

13. On the close of the hearing the presiding officer shall forthwith file a complete record of the proceedings with the Administrator. The presiding officer shall not file an intermediate report unless so directed by the Administrator. If a report is filed, it shall be advisory only and have no binding effect upon the Administrator.

14. No order issued as a result of the hearing will take effect until after due notice is given of the issuance thereof by publication in the FEDERAL REGISTER.

Signed at Washington, D. C., this 24th day of February 1941.

PHILIP B. FLEMING,
Administrator.

[F. R. Doc. 41-1340; Filed, February 24, 1941; 11:50 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File Nos. 43-272, 46-192]

IN THE MATTER OF COLUMBIA GAS & ELECTRIC CORPORATION, UNITED FUEL GAS COMPANY, AND WARFIELD NATURAL GAS COMPANY

ORDER DENYING APPLICATION FOR LEAVE TO INTERVENE

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 21st day of February, A. D. 1941.

It appearing to the Commission that the above-entitled matter has been set down for hearing on April 16, 1940, at which time parties may be heard with respect thereto; and

It appearing to the Commission that applications for intervention, and an amendment thereto, have been filed in said matter by Penn-Ken Gas and Oil Corporation and Duke-Whitney Gas and Oil Corporation in which it was alleged, among other things, that said corporations claim title to certain lands and properties, title to which is also claimed by Warfield Natural Gas Company and that said Warfield Natural Gas Company is indebted to them in an action for trespass and for the value of gas taken and produced by Warfield Natural Gas Company from said lands and properties; that there is now pending an action filed by said Penn-Ken Gas and Oil Corporation against said Warfield Natural Gas Company, claiming damages in the sum of aproximately $70,000,000; that said applicants for intervention allege that they possess or represent a legitimate interest which is, or may be, inadequately represented in this proceeding and that their participation in the proceeding would be in the public interest and for the protection of investors; and

Public hearings have been held regarding said application for leave to intervene after appropriate notice; and the Commission having examined the record in this matter; and

It appearing that it is not within the province of the Commission to determine the merits of the controversy involved in applicants' suit at law and that the questions of title and alleged damages for the conversion of natural gas hereinbefore referred to should be left to the court in which the action is now pending; that applicants have stated that their purpose for seeking to intervene herein is to prevent the dissolution of the Warfield Natural Gas Company and a transfer of its assets pending determination of said action at law; that the proposed intervenors are, in effect, seeking a temporary injunction in aid of their suit; and that denial of this application for leave to intervene will in no way prejudice or jeopardize applicants' rights in the event that applicants should be entitled to a remedy either at law or in equity; and

It further appearing that, while the litigation now pending before the United States District Court in Kentucky may subsequently be found material in applying the standards of the Holding Company Act of 1935 to the proposed transaction, the Commission is fully apprised of the existence of such litigation and no purpose would be served by considering evidence in support of, or in opposition to, the merits of such litigation;

Now therefore it is ordered, That the applications by Penn-Ken Gas and Oil Corporation and Duke-Whitney Gas and Oil Corporation for leave to intervene herein be, and the same hereby are, denied.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1320; Filed, February 24, 1941; 11:16 a. m.]

[File No. 70-244]

IN THE MATTER OF DURHAM PUBLIC SERVICE COMPANY

ORDER GRANTING APPLICATION PURSUANT TO RULE U-8

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 21st day of February, A. D. 1941.

The above named party having filed an application pursuant to the Public Utility Holding Company Act of 1935, particularly section 6 (b) thereof, regarding the issuance and sale of an unsecured 2½% note in the principal amount of $400,000, due September 1, 1943;

Said application having been filed on February 1, 1941, and amendments No. 1 and No. 2 having been filed thereto, the second of said amendments having been filed on February 15, 1941; notice of the filing of said application having been duly given in the form and manner prescribed by Rule U-8 promulgated pursuant to said Act, and the Commission not having received a request for hearing with respect to said application within the period specified in said notice, or otherwise, and not having ordered a hearing thereupon; and

The above named party having requested that the Commission advance the effective date of said application; and the Commission finding that the requirements of section 6 (b) are satisfied and that it is appropriate that the application should be granted, and being satisfied that the effective date of such application as amended by amendments No. 1 and No. 2 should be advanced:

It is hereby ordered, Pursuant to said Rule U-8 and the applicable provisions of said Act, and subject to the terms and conditions prescribed in Rule U-9, that the aforesaid application as so amended be granted forthwith.

Healy, C., dissents for the reasons stated in his memorandum of April 1, 1940.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1319; Filed, February 24, 1941; 11:16 a. m.]

[File No. 59-6]

IN THE MATTER OF THE UNITED GAS IMPROVEMENT COMPANY AND ITS SUBSIDIARY COMPANIES, RESPONDENTS

ORDER RECONVENING HEARING FOR PURPOSE OF ARGUMENT AND ORDER TO SHOW CAUSE

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 21st day of February, A. D. 1941.

A hearing having been held on February 20, 1941, in regard to the above-captioned matter, and the Respondents at that time having taken issue with certain of the tentative conclusions of the Commission expressed in its Statement of Tentative Conclusions issued January 18, 1941, as well as certain other matters, and having requested an opportunity to be heard with respect thereto:

It is ordered, That the hearing be reconvened on the 27th day of February, 1941, at ten o'clock in the forenoon of that day, in room 1102 of the Securities and Exchange Commission Building, 1778

Pennsylvania Avenue NW., Washington, D. C., at which time the Respondents will be afforded an opportunity to be heard with respect to the interpretation of the provisions of Clause (B) and the provisions concerning retention of interests in other businesses of section 11 (b) (1) of the Public Utility Holding Company Act of 1935, and as to whether under such Act gas and electric facilities owned or operated by such system, together may be found to constitute a "single integrated public utility system" as referred to in section 11 (b) (1) of said Act:

It is further ordered, That at such time and place the Respondents shall show cause why the Commission should not forthwith issue an order pursuant to section 11 (b) (1) of said Act requiring divestment by The United Gas Improvement Company of its direct or indirect interest in the following public utility companies: The Arizona Power Corporation, operating in the State of Arizona, Concord Gas Company and Manchester Gas Company, operating in the State of New Hampshire, The Wyandotte County Gas Company, operating in the State of Kansas, and Nashville Gas and Heating Company, operating in the State of Tennessee.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-1318; Filed, February 24, 1941; 11:16 a. m.]

UNITED STATES CIVIL SERVICE COMMISSION.

CONDITION OF THE APPORTIONMENT AT CLOSE OF BUSINESS SATURDAY, FEBRUARY 15, 1941, BASED ON 1940 CENSUS

Important. Although the apportioned classified Civil Service is by law located only in Washington, D. C., it nevertheless includes only about half of the Federal Civilian positions in the District of Columbia. Positions in local post offices, customs districts and other field services outside of the District of Columbia which are subject to the Civil Service Act are filled almost wholly by persons who are local residents of the general community in which the vacancies exist. It should be noted and understood that so long as a person occupies, by original appointment, a position in the apportioned service, the charge for his appointment continues to run against his State of Original residence. Certifications of eligibles are first made from States which are in arrears.

State	Number of positions to which entitled	Number of positions occupied
IN ARREARS		
1. Virgin Islands	11	0
2. Puerto Rico	845	46
3. Hawaii	191	20
4. Alaska	33	11
5. California	3,123	1,051
6. Texas	2,901	1,327
7. Louisiana	1,069	523
8. Michigan	2,377	1,251
9. Arizona	226	121
10. South Carolina	859	496
11. New Mexico	240	151
12. Kentucky	1,287	822
13. Mississippi	987	631
14. Georgia	1,412	917
15. Alabama	1,281	843
16. North Carolina	1,615	1,089
17. Arkansas	881	598
18. Ohio	3,123	2,155
19. Nevada	50	36
20. New Jersey	1,881	1,378
21. Tennessee	1,318	1,053
22. Florida	858	700
23. Oklahoma	1,056	914
24. Illinois	3,571	3,192
25. Indiana	1,550	1,408
26. Wisconsin	1,419	1,331
27. Idaho	237	225
28. New York	6,095	5,974
29. Delaware	121	120
30. West Virginia	860	854
IN EXCESS		
31. Oregon	493	494
32. Washington	785	787
33. Missouri	1,711	1,725
34. Minnesota	1,263	1,277
35. Colorado	508	515
36. Pennsylvania	4,476	4,585
37. Connecticut	773	804
38. Maine	383	404
39. Vermont	162	171
40. New Hampshire	222	237
41. Iowa	1,148	1,244
42. Massachusetts	1,952	2,147
43. Utah	249	274
44. Wyoming	113	128
45. Rhode Island	323	370
46. South Dakota	291	352
47. Montana	253	323
48. Kansas	814	1,057
49. Nebraska	595	819
50. North Dakota	290	409
51. Virginia	1,211	2,105
52. Maryland	823	2,225
53. District of Columbia	300	8,927

GAINS	
By appointment	477
By transfer	21
By reinstatement	4
By correction	1
Total	503
LOSSES	
By separation	82
By transfer	86
By correction	1
Total	169
Total appointments	60,616

NOTE: Number of employees occupying apportioned positions who are excluded from the apportionment figures under Sec. 3, Rule VII, and th ıAttorney General's Opinion of August 25, 1934, 17,884.

By direction of the Commission.

[SEAL] L. A. MOYER,
Executive Director and Chief Examiner.

[F. R. Doc. 41-1304; Filed, February 21, 1941; 4:01 p. m.]